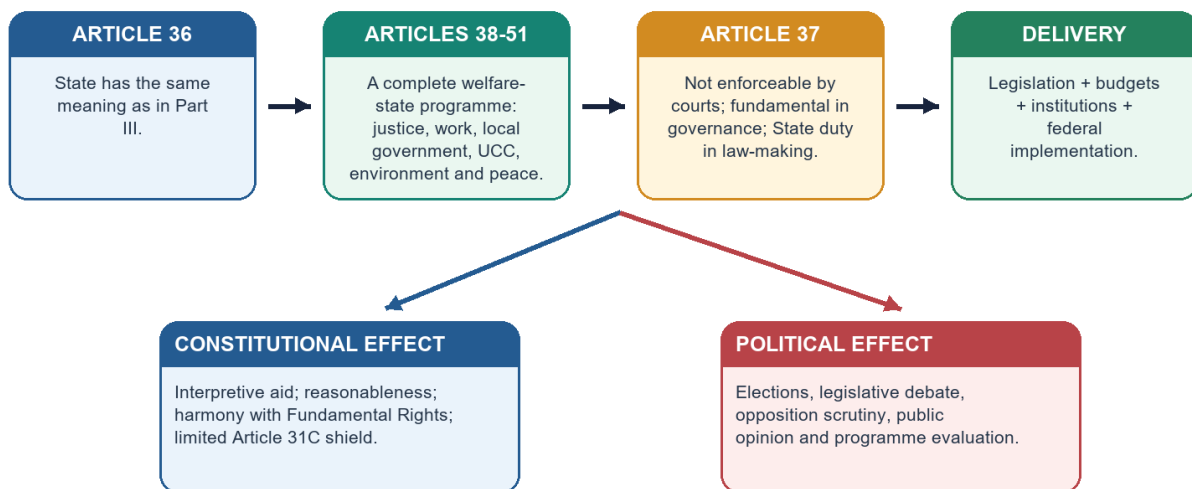


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Part IV architecture: direction without direct enforcement

The constitutional chain runs from definition to duty, policy delivery and accountability.



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 08 - Directive Principles - Complete Topic Package

Subject: Indian Polity | **Topic:** 08 | **GS-II + Prelims** | **Export date:** 2026-08-15 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, statutory, judicial or officially verified proposition; [ANALYSIS] exam synthesis; [CURRENT] dated legal status; [LIMIT] a qualification preventing overstatement.

Package method, scope boundary and current-law control

- Source order followed: certified answer-complete Core owner Polity/basic/Directive-Principles.md -> separately labelled optional deeper owner Polity/advanced/08_Directive-Principles.md -> local PYQ routing ledgers, official/local 2025 key, OCR-searchable M. Laxmikanth chapter and official question papers -> live primary constitutional, statutory, judicial and government sources -> Qdrant not used.
- [LIMIT] The Foundation and Core session is independently paper-complete. The optional Advanced section adds conceptual depth; skipping it does not remove any Article, amendment, case, implementation vehicle, NALSA/Lok Adalat rule, UCC control, routed PYQ or answer-writing structure.
- [FACT] Part IV contains Articles 36-51. Article 36 defines the State by reference to Part III. Article 37 makes the directives non-justiciable, yet fundamental in governance, and imposes a duty on the State to apply them in making laws.
- [FACT] The idea came from the Irish Constitution of 1937, which drew from the Spanish constitutional model. Ambedkar compared the directives to the Instrument of Instructions under the Government of India Act, 1935, but now addressed to the legislature and executive.
- [ANALYSIS] Part IV changes the State's constitutional purpose: from a colonial police state mainly maintaining order to a welfare state responsible for social, economic and political justice. It supplies distributive ends; Part III disciplines the means.
- [CURRENT] Legal status is controlled to **15 August 2026, Asia/Kolkata**. This package states only securely verified current positions and marks unsettled or time-sensitive matters.
- [CURRENT] *Property Owners Association v. State of Maharashtra*, 5 November 2024, holds that Article 31C, to the extent upheld in *Kesavananda Bharati*, remains in force. A law genuinely furthering Article 39(b) or (c) is shielded against Articles 14 and 19; the statutory nexus remains reviewable. Not every private asset is automatically a material resource of the community.
- [CURRENT] *Union of India v. Rajendra N. Shah*, 20 July 2021, invalidated Part IXB insofar as it applied to State co-operative societies for want of State ratification, but kept it operative for multi-State co-operative societies. Article 43B was not struck down and remains in Part IV.
- [CURRENT] The official Ministry of Labour and Employment/PIB announcement dated 21 November 2025 brought the Code on Wages, 2019, Industrial Relations Code, 2020, Code on Social Security, 2020, and Occupational Safety, Health and Working Conditions Code, 2020 into effect. This package therefore uses the four Codes as the current central framework, while not assuming uniform State-rule capacity or identical outcomes.
- [CURRENT] Uttarakhand's Uniform Civil Code Act, 2024 received Presidential assent on 11 March 2024 and commenced on 27 January 2025. Section 2 excludes Scheduled Tribes as defined by Article 366(25) read with Article 342, and persons/groups whose customary rights are protected under Part XXI.
- [CURRENT] News on AIR reported on 27 January 2026 that the Uttarakhand Governor promulgated the Uniform Civil Code (Amendment) Ordinance, 2026 under Article 213 with immediate effect. This package does **not** claim its section numbers, penalty amounts, litigation result, or whether it was later replaced, lapsed or re-promulgated because a controlling Gazette status was not securely verified.

Concise source/control note

- Constitution of India, Part IV and connected Articles, current official Legislative Department edition.
- OCR-searchable local *Indian Polity* by M. Laxmikanth, Directive Principles chapter, used for classification, constituent-history explanations, named criticism and utility.
- Legal Services Authorities Act, 1987, especially sections 3-11A, 12-13, 19-22 and 22A-22E; official India Code text and official NALSA pages.

- *State of Madras v. Champakam Dorairajan* (1951), *Golaknath* (1967), *Kesavananda Bharati* (1973), *Minerva Mills* (1980), *Unni Krishnan* (1993), *I.R. Coelho* (2007), *Union of India v. Rajendra N. Shah* (2021), and *Property Owners Association* (2024).
- Uniform Civil Code, Uttarakhand, 2024: official Uttarakhand Extraordinary Gazette dated 12 March 2024; official News on AIR commencement and 2026 Ordinance reporting.
- Law Commission: 21st Commission's 2018 Consultation Paper on Reform of Family Law and 22nd Commission's 2023 public consultation notice. No unverified final 22nd Commission recommendation is claimed.
- Local PYQ control: 2023 GS-II Q2; 2020 Prelims Q5, Q8, Q9, Q12, Q18; 2021 Q91; 2025 Q55. The 2018-2023 keys are absent locally and are labelled **INFERRED ANSWER - NOT OFFICIALLY VERIFIED**. The 2025 Set-A key was directly checked from the local official scan and is labelled **OFFICIAL LOCAL UPSC KEY VERIFIED**.
- Practice counts: 8 routed PYQs; 28 original hard MCQs; 8 remedial MCQs; 7 original solved Mains questions across 10, 15 and 20 marks.
- Visual count: 14 original compact PNG assets under notes/Polity/assets/08_Directive-Principles/.

Roadmap

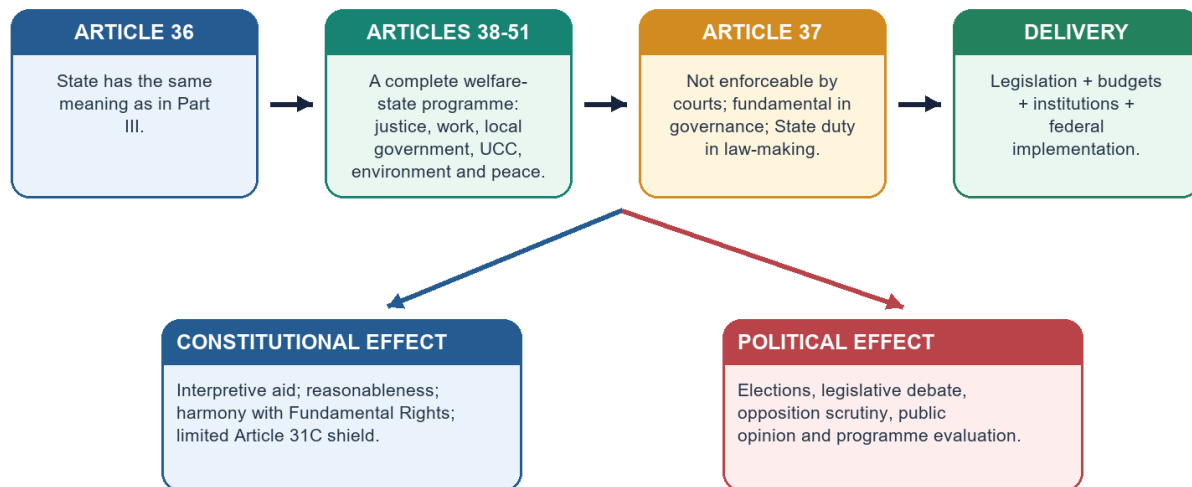
Stage	Complete coverage	Paper outcome
Architecture	Part IV, Articles 36-37, Irish/Spanish source, Instrument analogy, welfare state	Eliminates foundational traps
Text	Every clause from Articles 38 to 51	Secures article-to-directive matching
Classification	Socialistic, Gandhian, liberal-intellectual, overlaps and non-textual status	Prevents category overclaim
Constitutional evolution	42nd, 44th, 86th and 97th Amendments	Connects text to institutional change
FR-DPSP harmony	<i>Champakam to Property Owners</i> ; Article 31C	Replaces crude hierarchy with the current position
Implementation	Land, local government, legal aid, education, labour, health, environment, co-operatives, judiciary and peace	Supplies named GS-II evidence with limits
Focus modules	NALSA/Lok Adalat; Article 44/UCC	Covers the densest current and PYQ zones
Evaluation	Critics, defenders, federal/resource incentives and graded verdicts	Builds analytical answers
Practice	8 solved PYQs, 36 original/remedial MCQs, 7 solved Mains questions	Converts knowledge into marks
Optional Advanced	Positive constitutionalism, institutional competence, distributive review and federal pluralism	Adds 15/20-mark depth without making Core incomplete

PART I - Complete Foundation and Core learning session

01. Part IV as constitutional architecture

Part IV architecture: direction without direct enforcement

The constitutional chain runs from definition to duty, policy delivery and accountability.



Part IV moves from the Article 36 definition of State through substantive directives and Article 37 duty to legislation, institutions, political accountability and limited judicial effects.

Source, lineage and constitutional purpose

- [FACT] Articles 36-51 form Part IV, titled **Directive Principles of State Policy**.
- [FACT] The framers borrowed the model from Ireland; Ireland had drawn on Spain.
- [FACT] Ambedkar described the directives as a novel feature and compared them to the 1935 Act's Instrument of Instructions. The critical difference is democratic: they now guide constitutionally responsible legislatures and executives rather than colonial governors acting under imperial instructions.
- [FACT] Granville Austin described Fundamental Rights and Directive Principles together as the **Conscience of the Constitution**.
- [ANALYSIS] The directives are not a miscellaneous wish list. They define the social purpose for which democratic power should be used: reducing inequality, protecting labour and children, enabling education and legal aid, institutionalising self-government, reforming personal law, preserving ecology and promoting peace.

Welfare state versus police state

Police-state orientation	Welfare-state orientation under Part IV
Order, security and revenue dominate	Justice, capability, dignity and distribution become constitutional goals
Government mainly restrains wrongdoing	Government must also create positive social conditions
Equal legal form may be sufficient	Material inequality and unequal access become public concerns
Accountability is mostly legality-based	Accountability includes constitutional purpose and outcomes

[LIMIT] A welfare-state directive does not itself create an unlimited judicially enforceable benefit. Delivery usually requires legislation, appropriation, institutions, administrative capacity and federal cooperation.

Article 36: the addressee

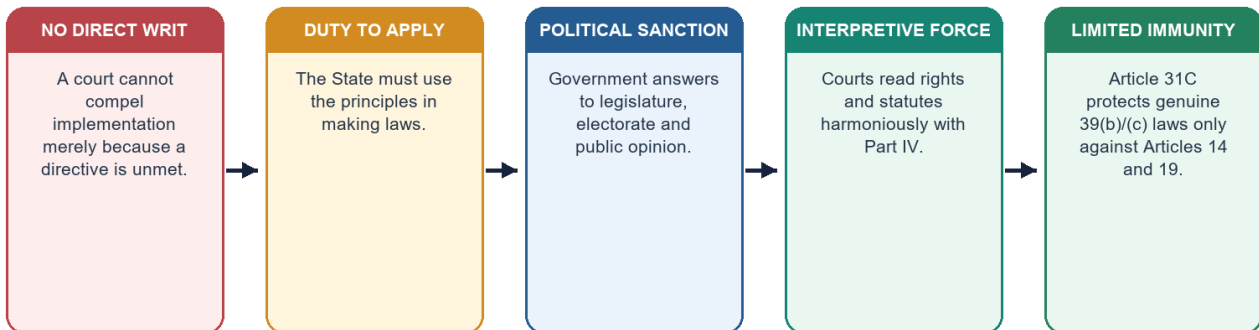
[FACT] In Part IV, **State** has the same meaning as in Part III. It covers Union and State legislative and executive organs, local authorities and other authorities falling within Article 12.

[ANALYSIS] This common definition links Parts III and IV: the same public power restrained by Fundamental Rights is directed toward welfare ends by Part IV.

02. Article 37: non-justiciability, duty and political sanction

Article 37 force chain

Non-justiciable does not mean optional, decorative or legally irrelevant.



Sanction ladder: constitutional duty -> institutional action -> democratic review -> judicial interpretation

Article 37 creates a force chain from non-enforceability to State duty, political sanction, interpretation and the narrow Article 31C shield.

Exact three-part rule

1. [FACT] The provisions in Part IV **shall not be enforceable by any court**.
2. [FACT] The principles are nevertheless **fundamental in the governance of the country**.
3. [FACT] It is the **duty of the State** to apply them in making laws.

What non-justiciability means

- A person cannot ordinarily obtain a writ merely because the State has not fully implemented Article 41, 44 or 47.
- A court cannot replace the legislature's resource allocation merely by treating a directive as an immediately enforceable entitlement.
- Failure to satisfy a directive does not by itself make a law void.

What it does not mean

- It does not make Part IV constitutionally optional.
- It does not prevent courts from using a directive to interpret a Fundamental Right, statute or reasonableness question.
- It does not prevent Parliament from amending the Constitution or enacting laws to implement a directive, subject to the basic structure.
- It does not erase democratic accountability for persistent non-performance.

Why the framers withheld direct enforcement

[FACT] The standard source-backed reasons were:

1. insufficient financial resources at Independence;
2. vast social diversity and backwardness;
3. the need to let the new State choose the order, time, place and mode of implementation; and
4. institutional prudence: courts could not continuously design budgets and administration for the entire welfare programme.

[ANALYSIS] These reasons justify **sequencing**, not permanent neglect. Article 37 converts flexibility into responsibility by retaining a constitutional duty and electoral sanction.

Political sanction

- [FACT] B.N. Rau's division between justiciable and non-justiciable rights became Parts III and IV.
- [FACT] Ambedkar argued that a government resting on popular vote could not ignore the directives without answering to the electorate.
- [ANALYSIS] The enforcement chain is legislature -> budget -> administration -> audit/opposition/public debate -> election. Courts enter mainly to preserve constitutional boundaries, not to run the programme.

UPSC trap: "Non-justiciable" is a rule about the remedy; it is not a verdict that the principle lacks constitutional status.

03. Complete article-by-article coverage: Articles 38 to 43B

Article	Exact constitutional direction	Mechanism and close-option control
38(1)	Promote welfare by securing a social order informed by social, economic and political justice in all institutions of national life	Broad welfare-state foundation
38(2)	Minimise inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities among individuals and groups in different areas/vocations	Added by the 44th Amendment; wider than income inequality
39(a)	Adequate means of livelihood for citizens, men and women equally	Livelihood, not an immediately enforceable job guarantee
39(b)	Ownership and control of material resources of the community distributed to subserve the common good	Distribution is broad; private resources may qualify contextually, not automatically
39(c)	Economic system must not cause concentration of wealth and means of production to the common detriment	The constitutional anti-concentration clause
39(d)	Equal pay for equal work for men and women	Equality of work and remuneration; now reflected in the current wage-code framework
39(e)	Health and strength of workers, men and women, and tender age of children not abused; citizens not forced by economic necessity into unsuitable avocations	Protects against exploitative labour conditions
39(f)	Children develop in freedom and dignity; childhood and youth protected against exploitation and moral/material abandonment	Added/substituted through the 42nd Amendment
39A	Equal justice and free legal aid so opportunities for justice are not denied by economic or other disabilities	42nd Amendment; Legal Services Authorities Act, 1987
40	Organise village panchayats and endow them with powers to function as units of self-government	Constitutionalised institutionally by the 73rd Amendment; Article 40 itself remains a DPSP
41	Within the limits of economic capacity and development, make effective provision for work, education and public assistance in unemployment, old age, sickness, disablement and undeserved want	The textual capacity limitation is examinable
42	Secure just and humane conditions of work and maternity relief	Labour dignity and reproductive protection
43	Secure a living wage, decent standard of life, leisure and social/cultural opportunities; promote cottage industries in rural areas individually or co-operatively	Contains both socialistic and Gandhian elements
43A	Secure workers' participation in management of undertakings, establishments or organisations engaged in industry	Added by the 42nd Amendment
43B	Promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies	Added by the 97th Amendment; remains valid after <i>Rajendra N. Shah</i>

High-value distinctions inside Article 39

- **39(a)** livelihood.
- **39(b)** distribution of material resources for common good.
- **39(c)** prevention of wealth/means-of-production concentration.
- **39(d)** equal pay.
- **39(e)** protection of worker/child health against abuse and unsuitable avocations.
- **39(f)** dignified child development and protection from exploitation/abandonment.

04. Complete article-by-article coverage: Articles 44 to 51

Article	Exact constitutional direction	Mechanism and close-option control
44	Endeavour to secure for citizens a uniform civil code throughout India	Non-justiciable; personal law is Concurrent List Entry 5
45	Provide early childhood care and education for all children until they complete six years	Recast by the 86th Amendment after elementary education moved to Article 21A
46	Promote educational and economic interests of weaker sections, especially SCs/STs, and protect them from social injustice and exploitation	"Especially" SCs/STs; not limited only to them
47	Raise nutrition and standard of living and improve public health as primary duties; endeavour to prohibit intoxicating drinks/drugs injurious to health except medicinal use	Public health plus prohibition; overlapping classification
48	Organise agriculture and animal husbandry on modern scientific lines; preserve/improve breeds and prohibit slaughter of cows, calves and other milch/draught cattle	Scientific husbandry plus cattle protection
48A	Protect and improve environment and safeguard forests and wildlife	Added by the 42nd Amendment; linked to Article 51A(g) and Article 21 jurisprudence
49	Protect every monument/place/object of artistic or historic interest declared by or under Parliamentary law to be of national importance from spoliation, disfigurement, destruction, removal, disposal or export	Declaration by/under Parliamentary law is the textual filter
50	Separate judiciary from executive in the public services of the State	Source of the recurrent Prelims question
51(a)	Promote international peace and security	Foreign-policy direction
51(b)	Maintain just and honourable relations between nations	Norm of responsible international conduct
51(c)	Foster respect for international law and treaty obligations in dealings of organised peoples	Does not automatically make every treaty self-executing domestically
51(d)	Encourage settlement of international disputes by arbitration	Peaceful dispute resolution

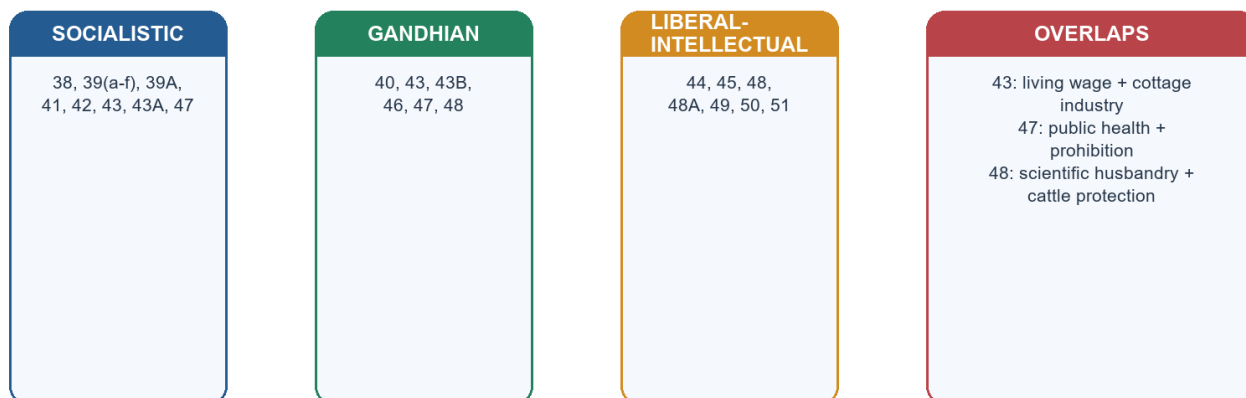
Directives that commonly get omitted

- Article 49 is not a generic culture clause; it protects nationally important monuments, places and objects within the Parliamentary-law framework.
- Article 51 has four distinct limbs. "International peace" alone is incomplete.
- Article 46 includes weaker sections generally, with special emphasis on SCs and STs.
- Article 41 expressly depends on economic capacity and development.

05. Classification: useful scholarship, not constitutional text

Articles 36-51: constitutional text versus scholarly classification

The Constitution does not label directives Socialistic, Gandhian or Liberal-intellectual.



Exam rule: quote the Article first; use the category only as a study aid.

The Socialistic, Gandhian and Liberal-intellectual labels are scholarly study aids; several Articles overlap honestly.

[FACT] The Constitution itself does **not** classify DPSP into three categories. The familiar division is a scholarly/Laxmikanth classification based on content and direction.

Classification	Article set commonly used	Core idea
Socialistic	38, 39(a)-(f), 39A, 41, 42, 43, 43A, 47	Social-economic justice, labour protection, welfare and redistribution
Gandhian	40, 43, 43B, 46, 47, 48	Village self-rule, cottage/co-operative economy, weaker sections, prohibition and cattle protection
Liberal-intellectual	44, 45, 48, 48A, 49, 50, 51	Civil reform, child development, scientific agriculture, ecology, heritage, rule-of-law institutions and internationalism

Honest overlaps

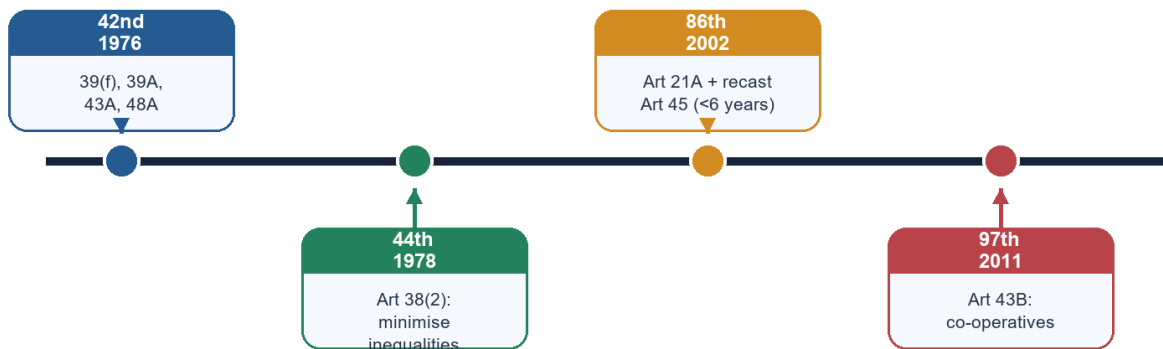
- Article 43 is socialistic for living wage and Gandhian for rural cottage industries.
- Article 47 is socialistic for nutrition/public health and Gandhian for prohibition.
- Article 48 is liberal-intellectual for scientific agriculture/animal husbandry and Gandhian for cattle protection.
- Article 46 combines distributive justice with the Gandhian programme of uplift.

UPSC trap: A category label never overrides the Article's text. If options differ, select by the directive, not by a rigid coaching taxonomy.

06. Amendments that changed Part IV

DPSP amendment timeline

Four amendments changed Part IV's text or its relationship with enforceable rights.



97th Amendment caveat: Article 43B survives *Rajendra N. Shah* (2021).

The 42nd, 44th, 86th and 97th Amendments expanded or restructured the Directive Principles.

Amendment	Change	Exam caution
42nd Amendment, 1976	Added/recast Article 39(f); inserted 39A, 43A and 48A	Four Part IV additions are the standard answer
44th Amendment, 1978	Inserted Article 38(2) on inequalities in income, status, facilities and opportunities	Not merely "income inequality"
86th Amendment, 2002	Inserted Article 21A and recast Article 45 for early childhood care/education below six	Elementary education moved into Part III; Article 45 did not disappear
97th Amendment, 2011	Inserted Article 43B and Part IXB; expanded Article 19(1)(c) to co-operative societies	<i>Rajendra N. Shah</i> severed the invalid State-co-operative operation of Part IXB; Article 43B remains

Rajendra N. Shah control

[FACT] Co-operative societies within a State fall within Entry 32, State List. The 97th Amendment's Part IXB altered that State legislative field without the ratification required by the proviso to Article 368(2).

[FACT] The Supreme Court therefore held:

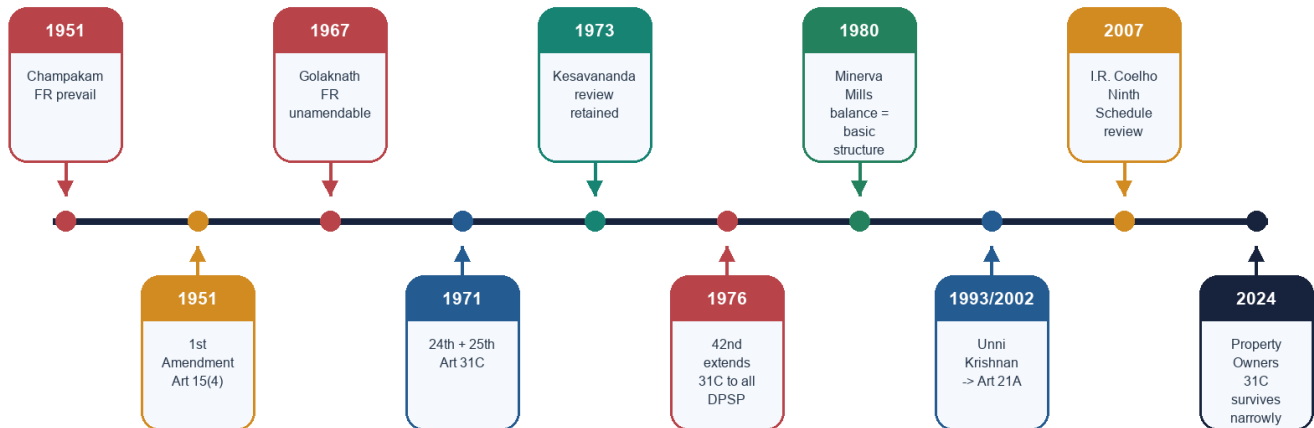
- Part IXB invalid/inoperative for State co-operative societies;
- Part IXB operative for multi-State co-operative societies;
- Article 43B and the amendment to Article 19(1)(c) were not struck down.

[ANALYSIS] The case demonstrates that implementing a DPSP cannot bypass federal amendment procedure. Welfare purpose does not erase structural limits.

07. Fundamental Rights-DPSP chronology: conflict to harmony

Fundamental Rights-DPSP: from conflict to constitutional harmony

The settled position is a basic-structure balance, not a slogan that one side always wins.



The chronology moves from Champakam's priority rule to Minerva Mills harmony, rights conversion through education and the 2024 Article 31C clarification.

Stage	Constitutional development	Exact significance
<i>Champakam Dorairajan</i> (1951)	Communal reservation order could not override Article 29(2) by relying on Article 46	FR prevailed in direct conflict; led to the First Amendment and Article 15(4)
First Amendment (1951)	Added Article 15(4); created Article 31A/31B architecture	Began constitutional accommodation of social reform and land reform
<i>Golaknath</i> (1967)	Parliament could not abridge Fundamental Rights by amendment	Blocked FR amendment for DPSP implementation
24th Amendment (1971)	Affirmed Parliament's constituent power to amend any provision	Response to <i>Golaknath</i> , subject later to basic structure
25th Amendment (1971)	Inserted Article 31C for laws implementing Article 39(b)/(c); also attempted to exclude judicial scrutiny of the declaration	Created the limited shield
<i>Kesavananda Bharati</i> (1973)	Upheld constituent power subject to basic structure; upheld first part of 31C and invalidated the review-ouster	Ends cannot eliminate judicial review
42nd Amendment (1976)	Extended Article 31C from 39(b)/(c) to every DPSP	Attempted Part IV primacy over Articles 14/19
<i>Minerva Mills</i> (1980)	Invalidated that extension; balance between Parts III and IV is basic structure	Harmony, not absolute primacy, is controlling
<i>Unni Krishnan</i> (1993)	Read education up to 14 into Article 21 with support from Articles 41, 45 and 46	DPSP illuminated an enforceable right
86th Amendment (2002)	Inserted Article 21A and recast Article 45	Textual constitutionalisation of the education floor
<i>I.R. Coelho</i> (2007)	Post-24 April 1973 Ninth Schedule insertions remain reviewable for damage to basic structure	Implementing laws cannot obtain absolute immunisation

Stage	Constitutional development	Exact significance
<i>Property Owners Association</i> (2024)	Original Article 31C remains; 39(b) may include some private resources but not all automatically	Current Article 31C/resource control

Present position: use this formulation

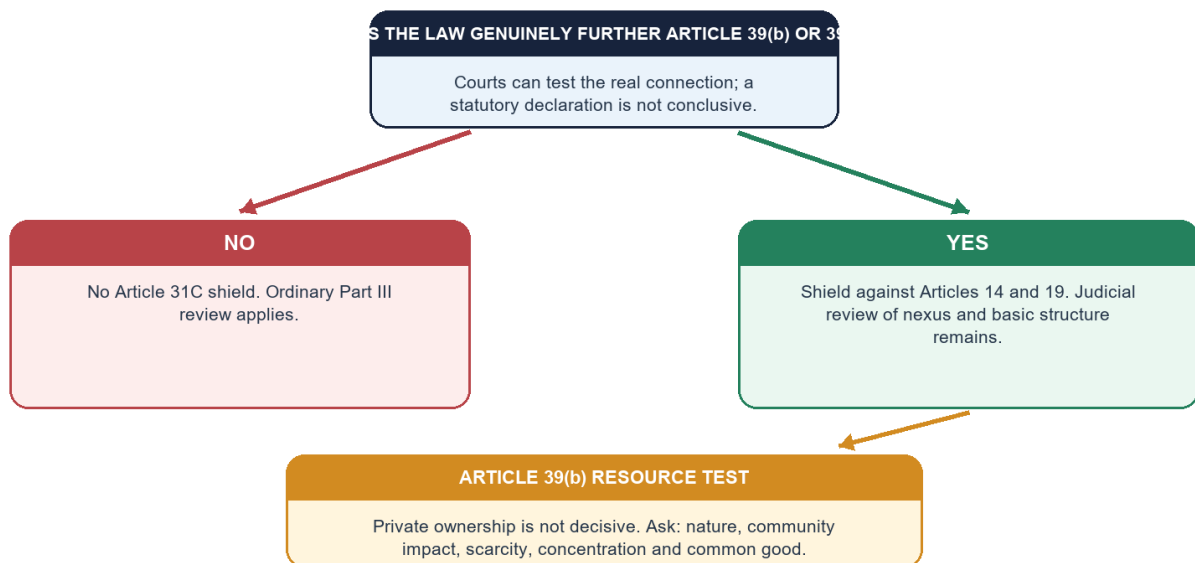
[ANALYSIS] Fundamental Rights and DPSP are complementary constitutional commitments. Fundamental Rights remain enforceable and cannot be destroyed in the name of welfare. Parliament may amend rights and legislate to implement Part IV, but the basic structure - including judicial review and harmony between Parts III and IV - limits that power. The specific surviving exception is Article 31C for laws genuinely giving effect to Article 39(b) or (c), which protects them from Articles 14 and 19 challenges while preserving judicial review of the nexus and constitutional boundaries.

Do not write: "Fundamental Rights always prevail over DPSP." **Write:** "Enforceable rights retain primacy in ordinary conflict, but constitutional harmony, permissible amendment and the narrow Article 31C shield qualify any absolute hierarchy."

08. Article 31C after Property Owners Association

Article 31C: current decision tree

Property Owners Association (5 Nov 2024) confirms the original shield remains.



Article 31C first asks whether a law genuinely implements Article 39(b) or (c), then applies a limited shield while retaining judicial review.

Surviving shield

- [FACT] Article 31C remains in force to the extent upheld in *Kesavananda Bharati*.
- [FACT] It protects a law genuinely giving effect to Article 39(b) or (c) from being void for inconsistency with Articles 14 or 19.
- [FACT] The 42nd Amendment's extension to all DPSP was invalidated in *Minerva Mills*.
- [FACT] The clause attempting to make the legislature's declaration conclusive and exclude judicial review did not survive *Kesavananda*.

Judicial inquiry

1. Does the law have a real and substantial connection to Article 39(b) or (c)?
2. If 39(b) is invoked, is the resource a material resource **of the community**?

3. Does the proposed distribution subserve the common good?
4. Does the measure damage another basic-structure feature?

Private resources after 5 November 2024

[FACT] The Court rejected both extremes:

- it rejected the proposition that private ownership always excludes a resource from Article 39(b); and
- it rejected the proposition that every privately owned asset automatically becomes a material resource of the community.

[FACT] The inquiry is context-specific. Relevant non-exhaustive factors include:

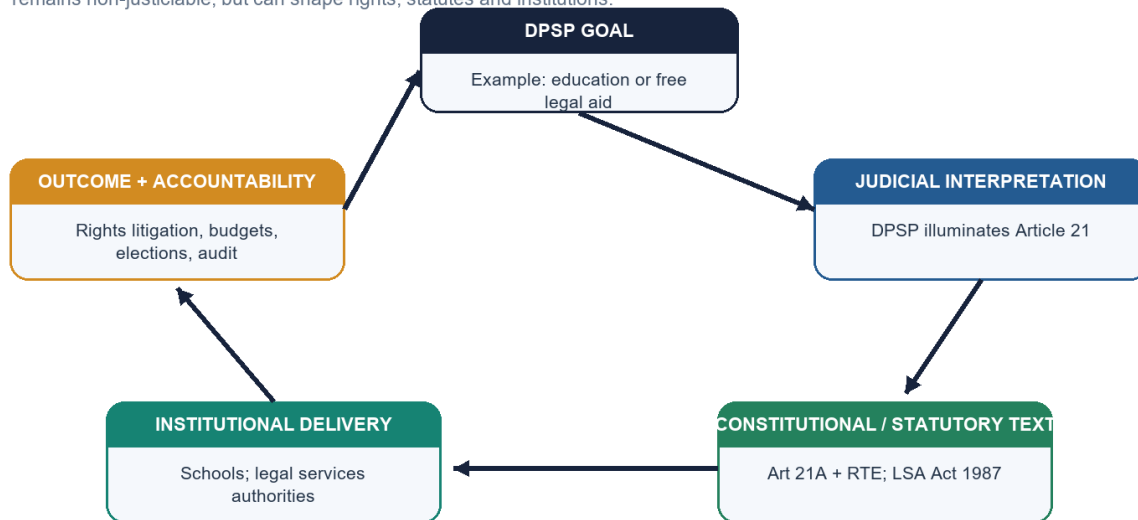
- nature and inherent characteristics of the resource;
- effect on community well-being;
- scarcity;
- consequences of concentrated private ownership; and
- the public-trust/common-good dimension.

[LIMIT] Article 31C is not a general licence for nationalisation, arbitrary redistribution or immunity from every Fundamental Right. Its surviving textual shield is tied to Articles 39(b)/(c) and Articles 14/19.

09. From directive to enforceable entitlement

How a Directive Principle can acquire enforceable teeth

DPSP remains non-justiciable, but can shape rights, statutes and institutions.



Conversion is mediated by constitutional text, judicial doctrine and legislation - not by Article 37 alone.

A DPSP may shape judicial interpretation, constitutional amendment, legislation and institutions without itself becoming directly enforceable.

Education

1. Articles 41 and old Article 45 supplied the educational goal.
2. *Unni Krishnan* read education up to age 14 into Article 21, subject to the State's capacity beyond that stage.
3. The 86th Amendment inserted Article 21A for free and compulsory education of children aged 6-14.
4. Article 45 was recast for early childhood care and education below six.
5. The Right of Children to Free and Compulsory Education Act, 2009 supplied the statutory mechanism.

Legal aid

1. Article 39A states equal justice/free legal aid.
2. *M.H. Hoskot* and *Hussainara Khatoon* connected legal representation and fair procedure to Article 21.

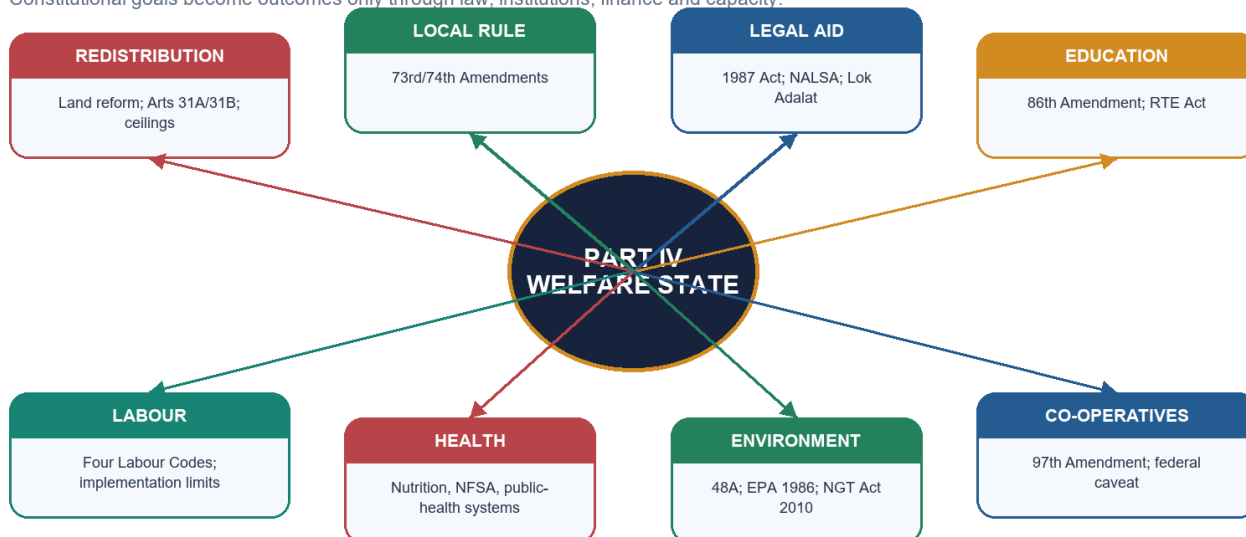
3. The Legal Services Authorities Act, 1987 created institutional entitlement and delivery.

[ANALYSIS] This is **constitutional conversion by mediation**, not automatic enforceability: directive -> rights interpretation -> amendment/statute -> institution -> remedy and accountability.

10. Implementation map: law, institution, outcome and honest limits

DPSP implementation map

Constitutional goals become outcomes only through law, institutions, finance and capacity.



DPSP implementation spans redistribution, local government, legal aid, education, labour, health, environment and co-operatives.

Directive	Named constitutional/statutory/institutional vehicle	What it proves	Honest limit
38, 39(b)/(c)	Land-reform laws; First/Fourth/Seventeenth Amendments; Articles 31A/31B; Ninth Schedule	Redistribution and agrarian restructuring were treated as constitutional priorities	Ceiling, tenancy and redistribution outcomes vary; <i>I.R. Coelho</i> prevents absolute post-1973 Ninth Schedule immunity
40	73rd Amendment, Part IX; State Panchayat laws	Village self-government received constitutional status	Fiscal devolution, functionaries and State control remain uneven; detailed owner is Polity 23
Urban decentralisation related to welfare delivery	74th Amendment, Part IXA	Municipal democracy supports Part IV outcomes	Article 40 expressly mentions village panchayats, not municipalities; detailed owner is Polity 24
39A	Legal Services Authorities Act, 1987; NALSA/SLSA/DLSA/Taluk committees; Lok Adalats	Converts equal justice into a nationwide statutory system	Awareness, counsel quality, continuity and access remain uneven
41, 45	86th Amendment; Article 21A; RTE Act, 2009; early-childhood programmes	A directive helped create an enforceable education floor	Enrolment does not itself ensure learning, inclusion or early-childhood quality
42, 43, 43A	Four Labour Codes in force from 21 Nov 2025; tripartite/industrial institutions	Current law consolidates wages, industrial relations, social security and occupational safety	Rules, inspection, informality, platform work and State capacity determine outcomes; do not equate enactment with universal compliance

Directive	Named constitutional/statutory/institutional vehicle	What it proves	Honest limit
46	Article 15(4)/(5), Article 16(4), educational and welfare legislation/institutions	Protective discrimination and targeted development implement social justice	Reservation design and outcome evaluation belongs mainly to Polity 07/Social Justice
47	National Food Security Act, 2013; nutrition/health systems; State prohibition laws	Nutrition and health are primary constitutional duties	Health is State-heavy and capacity-sensitive; prohibition has public-health, revenue and liberty trade-offs
48	Agricultural, livestock and cattle-preservation laws within divided legislative competence	Scientific husbandry and cattle protection coexist in one Article	Restrictions still face legislative-competence and rights review
48A	Water Act 1974, Air Act 1981, Environment (Protection) Act 1986, National Green Tribunal Act 2010	Environmental protection has dense statutory institutions and links to Article 21/51A(g)	Enforcement, regulatory capacity and development trade-offs persist; detailed owner is Environment
49	Ancient Monuments and Archaeological Sites and Remains Act, 1958; Archaeological Survey of India	Nationally important heritage has a protective legal framework	Conservation conflicts with encroachment, infrastructure and funding constraints
43B	97th Amendment; Multi-State Co-operative Societies Act, 2002; State co-operative laws	Constitutional support for autonomy, democracy and professional management	Federal competence and capture/governance risks; detailed owner is Polity 39
50	Separation of judicial and executive magistracy through State reforms and criminal-procedure architecture	Supports impartial adjudication and judicial independence	Administrative control and subordinate-judiciary capacity remain reform questions
51	UN participation; treaty practice; Arbitration and Conciliation Act, 1996	Peace, international law and arbitration inform external conduct	Article 51 does not automatically incorporate every treaty into domestic law

Implementation mechanism

[ANALYSIS] A directive succeeds only when five links align:

constitutional goal -> legislative competence -> budget -> institution/front-line worker -> measurable outcome.

Institutional incentives

- Governments prefer visible, credit-claimable programmes over slow institutional reform.
- Concurrent/State subjects create coordination and financing problems.
- Courts can enforce a floor more readily than manage a complex welfare system.
- Targeted schemes can improve access but may fragment entitlements or create exclusion errors.
- Universal constitutional language often meets unequal local capacity.

Cross-link discipline

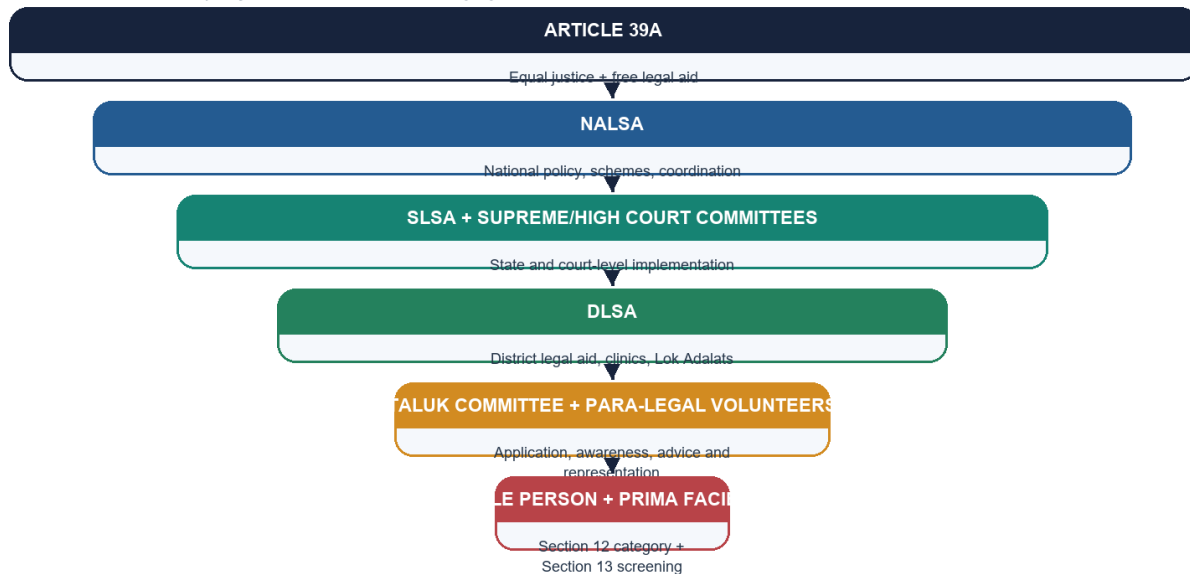
- Fundamental Rights doctrine: Polity 07.
- Fundamental Duties and Article 51A(g)/(e)/(f): Polity 09.
- Panchayats and Municipalities: Polity 23/24.
- Co-operative structure: Polity 39.
- Environmental science/regulation: Environment folder.
- Outcome evaluation of education, health, food and vulnerable groups: Social Justice.

[LIMIT] This owner retains the Part IV constitutional mechanism needed to answer DPSP questions; it does not duplicate each specialist policy owner.

11. Article 39A, free legal aid and NALSA

Article 39A to last-mile legal services

The 1987 Act converts equal justice into a tiered delivery system.



Article 39A operates through NALSA, State and court committees, district authorities and Taluk-level delivery.

Constitutional and statutory chain

- [FACT] Article 39A was inserted by the 42nd Amendment to secure equal justice and free legal aid so justice is not denied by economic or other disabilities.
- [FACT] The Legal Services Authorities Act, 1987 creates the National Legal Services Authority and a multi-level institutional network.
- [FACT] Article 21 jurisprudence gives free legal representation an enforceable fair-procedure dimension in appropriate criminal cases; Article 39A supplies the constitutional value.

Institutional levels

Level	Core role
NALSA / Central Authority	National policy, schemes, coordination, grants and monitoring
Supreme Court Legal Services Committee	Legal services for Supreme Court matters
State Legal Services Authority	State implementation, directions, awareness and Lok Adalats
High Court Legal Services Committee	Legal services for High Court matters
District Legal Services Authority	District delivery, clinics, Lok Adalats and Taluk supervision
Taluk Legal Services Committee	Grassroots applications, aid, camps and local Lok Adalats

Section 12 eligibility

[FACT] A person is eligible if the person falls in any statutory category:

1. member of a Scheduled Caste or Scheduled Tribe;
2. victim of trafficking in human beings or begar under Article 23;
3. woman or child;
4. person with disability under the applicable disability-law definition;
5. person in undeserved want, including victim of mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster;

6. industrial workman;
7. person in custody, including specified protective, juvenile or mental-health institutions; or
8. person below the income ceiling prescribed by the appropriate government for the relevant court.

[FACT] Section 13 also requires the concerned authority to be satisfied that the applicant has a **prima facie case** to prosecute or defend. An income affidavit may be accepted unless there is reason to disbelieve it.

UPSC trap: There is no single permanent national income ceiling applicable to every court and State. Quote the statutory architecture and say the appropriate government prescribes the ceiling.

What legal services include

- legal advice and consultation;
- representation by a lawyer;
- drafting pleadings, appeals and legal documents;
- process fees and eligible litigation expenses;
- certified copies and case documents;
- legal awareness, clinics and assistance in securing statutory entitlements; and
- dispute settlement through Lok Adalats where appropriate.

Assessment of NALSA

Achievements

- creates a national-to-Taluk statutory chain;
- combines representation, advice, awareness and alternative dispute resolution;
- gives category-based access independent of income for several vulnerable groups;
- institutionalises Lok Adalats and para-legal outreach; and
- makes the constitutional promise visible in everyday justice delivery.

Limits

- low awareness and distance from institutions;
- uneven quality and continuity of panel lawyers;
- weak client-lawyer communication and follow-up;
- digital and linguistic barriers;
- legal-aid success measured by disposal rather than durable justice; and
- resource/capacity differences across States and districts.

[ANALYSIS] The reform priority is not another apex body. It is quality assurance: early legal advice, trained counsel, client feedback, outcome tracking, local-language access and stronger front-line legal services.

12. Ordinary and Permanent Lok Adalats

Ordinary versus Permanent Lok Adalat

Do not confuse consensual settlement with adjudication after failed conciliation.

ORDINARY LOK ADALAT

Entry
Pending or pre-litigation dispute

Role
Statutory conciliator only

Outcome
Award only on compromise/settlement

If settlement fails
Pending case returns to court; pre-litigation parties may sue

Award
Deemed civil-court decree; final, binding; no appeal

PERMANENT LOK ADALAT

Entry
Pre-litigation public-utility dispute

Role
Conciliation first

Outcome
If conciliation fails, may decide on merits (not an offence)

Procedure
Natural justice, objectivity, equity; not bound by CPC/Evidence Act

Award
Deemed decree; final and binding; no original suit/application/execution challenge

Common trap: the word 'Permanent' changes both subject-matter and decision power.

Ordinary Lok Adalats settle only by consent; Permanent Lok Adalats for public utility services may decide on merits after conciliation fails.

Ordinary Lok Adalat: sections 19-21

- [FACT] It may take a pending case or a pre-litigation dispute within the relevant court's jurisdiction.
- [FACT] It has no jurisdiction over a non-compoundable offence; official NALSA guidance also excludes divorce matters.
- [FACT] Members are statutory conciliators, not judges deciding the dispute on their own.
- [FACT] Settlement must rest on compromise/consent. Coercion is impermissible.
- [FACT] If settlement fails, a pending case returns to the referring court at the stage already reached; pre-litigation parties are advised to pursue ordinary remedies.
- [FACT] An award is deemed a civil-court decree/order, is final and binding, and no appeal lies.
- [LIMIT] Because an ordinary award is founded on settlement, absence of genuine consent attacks the foundation; the Act does not convert a failed conciliation into adjudication.

Permanent Lok Adalat: sections 22A-22E

- [FACT] It is a permanent pre-litigation forum for disputes concerning notified **public utility services**.
- [FACT] It begins with conciliation.
- [FACT] If parties fail to agree, it may decide the dispute on merits, provided the dispute does not relate to an offence.
- [FACT] It is guided by natural justice, objectivity, fair play, equity and other principles of justice; it is not bound by the Code of Civil Procedure or Evidence Act.
- [FACT] Its award, whether on settlement or merits, is final and binding, deemed a civil-court decree, and cannot be called in question through an original suit, application or execution proceeding.

Precise comparison

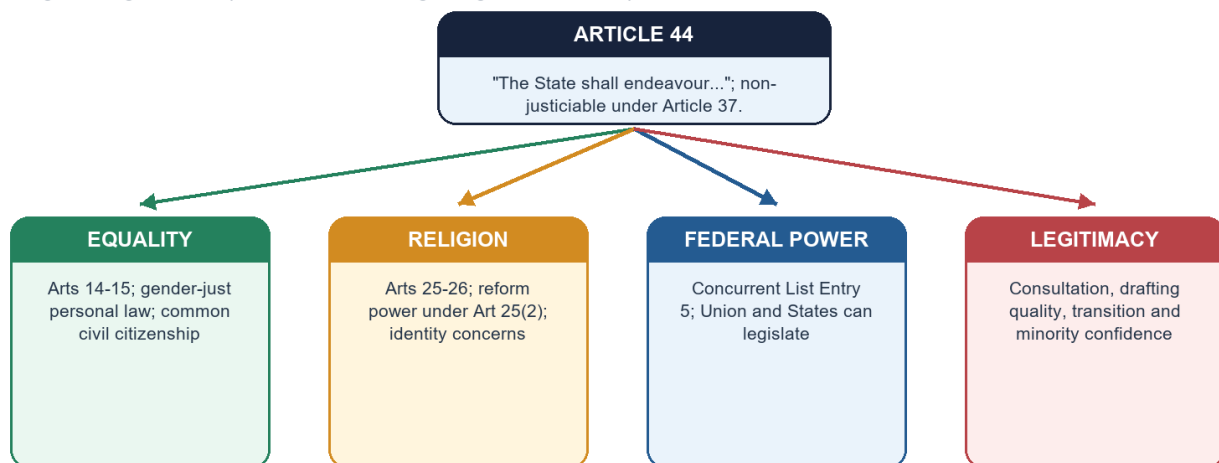
Point	Ordinary Lok Adalat	Permanent Lok Adalat
Subject	Broad civil/compoundable matters within jurisdiction	Public utility service disputes
Stage	Pending or pre-litigation	Pre-litigation
Core role	Conciliation only	Conciliation, then merits decision if permitted
Consent	Essential for award	Settlement consensual; merits award possible after failure
Failed settlement	Returns/advises parties to court	May adjudicate, if not an offence
Award	Deemed decree; final, binding; no appeal	Deemed decree; final, binding; statutory bar on original challenge route

Close-option trap: "No appeal" does not make the two bodies identical. The decisive distinction is **decision power after failed conciliation**.

13. Article 44 and the Uniform Civil Code

Article 44 Uniform Civil Code: argument tree

A high-scoring answer separates constitutional goal, rights tension, competence and method.



Courts have urged legislative attention; they have not ordered enactment of a UCC.

Article 44 requires an answer that balances equality, religious freedom, federal competence and democratic legitimacy.

Exact directive and legislative field

- [FACT] Article 44: the State shall endeavour to secure for the **citizens** a uniform civil code throughout the territory of India.
- [FACT] Article 37 makes it non-justiciable.
- [FACT] Concurrent List Entry 5 covers marriage and divorce; infants and minors; adoption; wills, intestacy and succession; joint family and partition; and all matters for which parties were immediately before the Constitution subject to personal law.
- [ANALYSIS] Both Parliament and State legislatures can act within the Concurrent List framework, subject to Article 254 and other constitutional limits.

The constitutional tension

Equality/reform case	Religion/pluralism case
Articles 14-15 reject sex-based subordination	Articles 25-26 protect conscience and religious affairs
Common civil citizenship can simplify unequal rules	Personal law carries identity, community and customary meaning
Article 25(2) permits social-welfare and reform legislation	Reform must distinguish secular civil consequences from protected belief/practice
Uniform rules can reduce forum and status inequality	A formally uniform rule may still embody majoritarian assumptions

[ANALYSIS] The question is not equality **versus** religion in the abstract. It is which civil rule causes constitutional harm, who has legislative competence, and whether the reform is proportionate, consultative and administratively workable.

Judicial decisions: holding versus observation

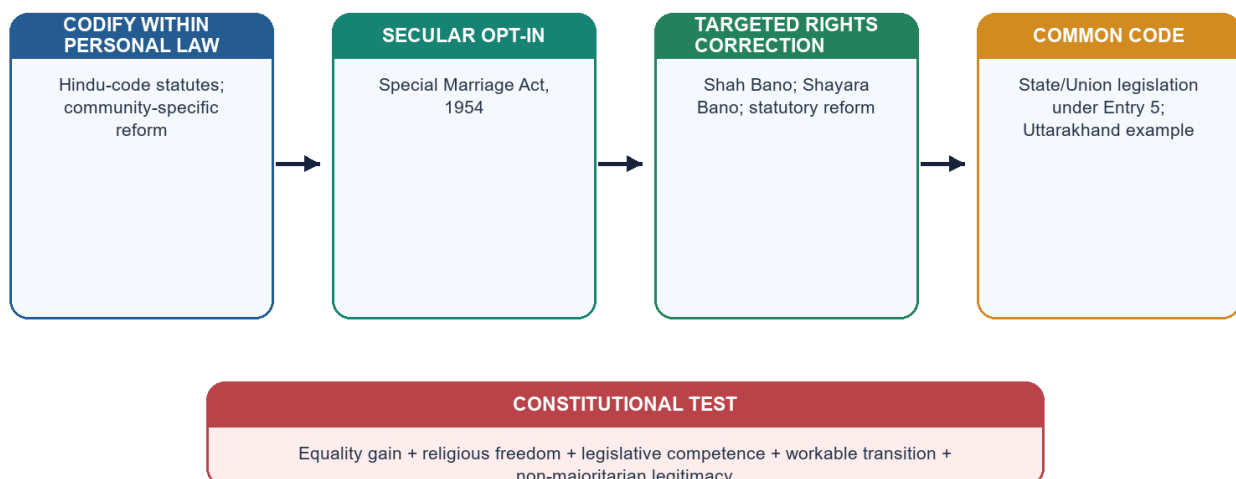
Case	What the Court decided	Article 44 caution
<i>Mohd. Ahmed Khan v. Shah Bano Begum</i> (1985)	Applied secular maintenance law to a divorced Muslim woman	Court observed that Article 44 remained unfulfilled; it did not enact a UCC
<i>Sarla Mudgal v. Union of India</i> (1995)	Conversion cannot be used to evade an existing Hindu marriage and contract a second valid marriage	Strong UCC observations were legislative exhortation, not mandamus
<i>John Vallamattom v. Union of India</i> (2003)	Invalidated discriminatory section 118 of the Indian Succession Act as applied to Christians	Article 44 observation accompanied an equality holding
<i>Shayara Bano v. Union of India</i> (2017)	By a 3:2 majority, invalidated/set aside instant triple talaq through differing opinions	It concerned a specific practice, not the validity of all personal-law systems and not a judicial UCC

Mandatory phrasing: Courts have **observed, urged or expressed concern** about Article 44. Do not say the Supreme Court ordered Parliament to enact a UCC.

Existing reform routes

Article 44: four reform routes

Uniformity is one constitutional route; targeted equality reform is another.



1. **Community-specific codification:** Hindu marriage, succession, minority/guardianship, adoption and maintenance statutes of the 1950s.
2. **Secular opt-in:** Special Marriage Act, 1954 offers a civil marriage route but does not displace all personal law for everyone.
3. **Targeted rights correction:** reform discriminatory rules/practices without waiting for a universal code.
4. **Common code:** legislation under Entry 5, with transition, conflict-of-laws and federal questions.

Goa caveat

[FACT] Goa's family-law system, inherited from Portuguese civil law and subsequently adapted, is often cited as a common civil-law example.

[LIMIT] Do not describe Goa as perfectly uniform across every community, institution and subject. Exceptions and differential incidents mean it is an instructive model, not proof that every personal-law distinction has disappeared.

Law Commission

- [FACT] The 21st Law Commission's 2018 Consultation Paper on Reform of Family Law stated that a UCC was **neither necessary nor desirable at that stage** and prioritised removing discrimination within family laws.
- [FACT] The 22nd Law Commission issued a fresh public notice in 2023 inviting views on the UCC.
- [LIMIT] A consultation is not a final recommendation. No final 22nd Commission conclusion is claimed here.

Uttarakhand current-law control

- [FACT] The official Gazette records Presidential assent on **11 March 2024**.
- [FACT] The Code commenced on **27 January 2025**.
- [FACT] Section 2 excludes Scheduled Tribes under Article 366(25) read with Article 342 and persons/groups with customary rights protected under Part XXI.
- [CURRENT] News on AIR reported a 2026 Amendment Ordinance promulgated under Article 213 with immediate effect and described procedural, administrative and penal changes.
- [LIMIT] This package does not state unverified section numbers, penalties, current litigation outcomes or whether the Ordinance presently survives as an Ordinance or replacement Act.

Graded Article 44 verdict

[ANALYSIS] Article 44 supplies a constitutional direction toward equal civil citizenship, but Article 37 assigns the choice of form and timing to democratic law-making. The strongest route is neither indefinite inaction nor mechanically identical rules: identify discrimination, consult affected groups, preserve genuinely protective diversity, offer clear transition and remedies, and test every provision against equality, liberty and religious freedom.

14. Directives outside Part IV

[FACT] These are constitutional directions but are **not** DPSP in Part IV:

Article	Location	Direction
335	Part XVI	Claims of SCs/STs shall be taken into consideration in services/posts consistently with maintenance of administrative efficiency; provisos permit specified relaxation/reservation measures
350A	Part XVII	State and local authorities should provide adequate facilities for mother-tongue instruction at the primary stage for children belonging to linguistic minority groups; President may issue directions
351	Part XVII	Union's duty to promote the spread and development of Hindi so it may serve as a medium of expression for India's composite culture, drawing on Hindustani and other Eighth Schedule languages and primarily Sanskrit for vocabulary

Distinction

- Part IV directives share Article 37's explicit non-enforceability/duty framework.
- Articles 335, 350A and 351 have their own text, location, addressee and mechanism.
- [ANALYSIS] Calling them "directives outside Part IV" is a study classification; do not relocate them into Articles 36-51.

15. Criticisms, defenders and implementation constraints

Criticism and defence: the graded constitutional verdict

Named criticism is useful only when linked to mechanism and counterargument.

No legal force	CRITIQUE K.T. Shah: 'pious superfluities'	DEFENCE / QUALIFICATION Art 37 duty + political sanction + interpretive force
Vagueness / arrangement	CRITIQUE N. Srinivasan: illogically arranged	DEFENCE / QUALIFICATION Breadth allows adaptation across policy domains
Conservative philosophy	CRITIQUE Ivor Jennings: 'pious aspirations'	DEFENCE / QUALIFICATION Open texture enabled education, environment and legal-aid evolution
Institutional conflict	CRITIQUE K. Santhanam: Centre-State / executive tensions	DEFENCE / QUALIFICATION Federal implementation requires competence, finance and coordination

Verdict: indispensable constitutional direction, but no substitute for capacity, finance or measurable delivery.

Named critiques become analytical only when paired with constitutional mechanisms, counterarguments and implementation limits.

Named criticism supported by the local source

Critic	Supported formulation	Analytical use
K.T. Shah	"Pious superfluities"; cheque payable when bank resources permit	Attacks absence of a legal remedy and resource contingency
T.T. Krishnamachari	"Veritable dustbin of sentiments"	Attacks breadth and aspirational drafting
K.C. Wheare	"Manifesto of aims and aspirations"; moral homily	Questions constitutional enforceability
Ivor Jennings	"Pious aspirations"; criticised conservative/Fabian inheritance	Questions coherence and adaptability
N. Srinivasan	Neither properly classified nor logically arranged	Supports the non-textual/overlap caution
K. Santhanam	Potential Centre-State and executive conflicts	Opens the federal/institutional dimension

Defenders

Defender	Supported proposition	Analytical use
Ambedkar	Goal of economic democracy; electoral accountability	Part IV completes political democracy
Granville Austin	Social revolution; conscience with FR	Parts III and IV are complementary
B.N. Rau	Moral precepts with educative value	Non-justiciability can coexist with constitutional guidance
L.M. Singhvi	Life-giving provisions and social-justice philosophy	Part IV supplies constitutional direction
M.C. Setalvad	Instrument of Instructions, beacon to courts, background to State action, amplification of Preamble	Explains interpretive and institutional utility

Mechanism-based evaluation

Constraint	Institutional mechanism	Counterargument	Graded verdict
Resource scarcity	Article 41 capacity clause; annual budgets	Scarcity cannot justify arbitrary or permanent exclusion	Sequence progressively and protect a minimum floor
Federal variation	State/Concurrent subjects; grants; local bodies	Diversity allows innovation	Use national floors, State flexibility and transparent outcomes
Weak incentives	Electoral cycles reward visible benefits	Public opinion is Article 37's main sanction	Publish service standards, outcome dashboards and independent evaluation
Judicial competence	Courts lack budget/administrative expertise	Rights need an enforceable minimum	Courts set floors/reasons/non-discrimination; governments design delivery
Fragmented institutions	Multiple departments and schemes	Specialisation can improve targeting	Converge data, grievance systems and last-mile accountability
Rights conflict	Welfare may burden liberty/property/religion	Part IV is constitutionally fundamental	Use proportionality, competence and basic-structure harmony

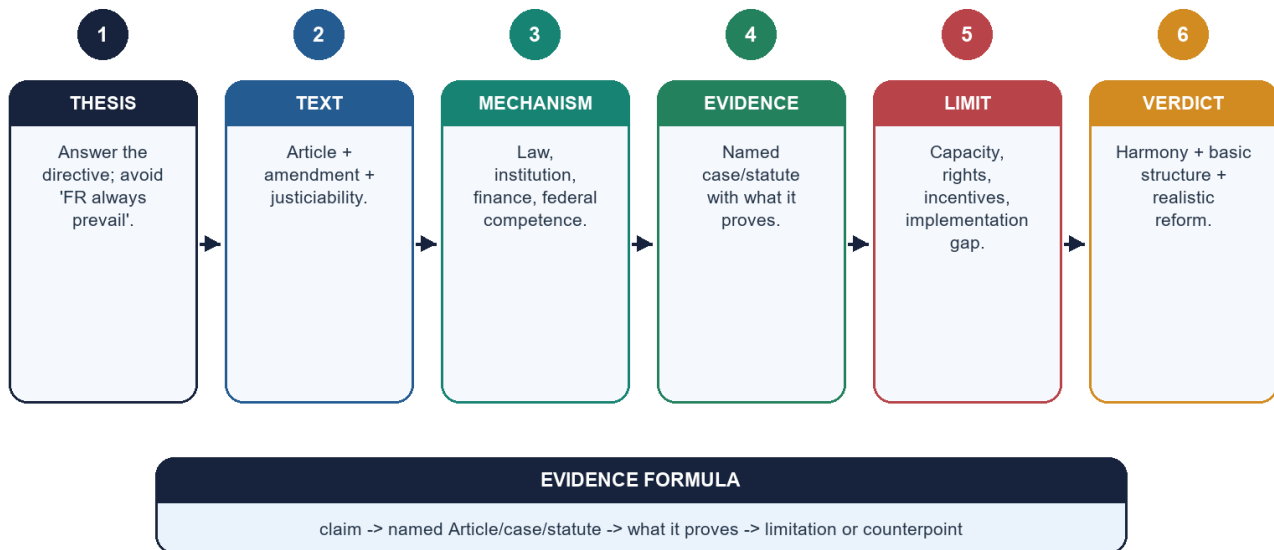
Overall verdict

[ANALYSIS] DPSP are constitutionally indispensable but operationally incomplete. They succeed when converted into competent law, funded institutions and measurable outcomes; they fail when used as rhetorical cover for arbitrary power or unfunded promises. Their non-justiciability preserves democratic policy space, while Part III, judicial review and federal structure prevent welfare ends from consuming constitutional means.

16. GS-II answer architecture

GS-II answer spine for Directive Principles

Move from exact constitutional text to evidence, limits and a graded verdict.



A high-scoring DPSP answer moves from a direct thesis and exact text through mechanism, named evidence, limitations and a graded constitutional verdict.

Universal answer spine

- Direct thesis:** answer whether Part IV is effective, harmonious, enforceable, contested or inadequately implemented.
- Exact text:** name Article 37 and the specific directive.
- Mechanism:** amendment, legislative competence, statute, institution and budget.
- Evidence:** case/statute/institution -> what it proves.
- Counterpoint:** rights, finance, federalism, institutional competence or delivery gap.
- Current control:** *Property Owners*, labour-code status, *Rajendra N. Shah* or Uttarakhand UCC only where relevant.
- Qualified conclusion:** harmony and workable implementation, not slogans.

Mark-scaled structure

Marks	Structure	Evidence density
10	thesis -> Article/text -> 2-3 mechanisms -> one limitation -> verdict	2-3 named Articles/cases/statutes
15	thesis -> text/chronology -> mechanism/outcomes -> counterargument -> current control -> verdict	4-6 named authorities
20	philosophy -> complete constitutional architecture -> conflict/harmony -> implementation map -> criticism/limits -> reforms -> graded verdict	5-8 named authorities across doctrine and delivery

Qualified conclusions

- **Article 37:** Non-justiciability protects policy sequencing; the constitutional duty and political sanction prevent Part IV from becoming decorative.
- **FR-DPSP:** The settled position is harmony under basic structure, with a narrow Article 31C exception - not absolute primacy of either Part.
- **Implementation:** India has constitutionalised several directives through amendments and statutes, but outcome inequality reveals the distance between legal architecture and State capacity.
- **NALSA:** The statutory network is extensive; quality, awareness and client-centred delivery are the next constitutional frontier.
- **UCC:** Article 44 supports equal civil citizenship, but legitimate reform must remain consultative, rights-compliant, federally competent and administratively workable.

PART II - Optional Advanced depth

Optional: Core above is independently answer-complete. This section deepens unfamiliar 15/20-mark questions without holding back any paper-essential content.

A. Positive constitutionalism

[ANALYSIS] Classical rights constitutionalism asks what the State must not do. Part IV asks what institutions and social conditions the State must create. India's Constitution is therefore simultaneously:

- anti-coercion through Fundamental Rights;
- anti-hierarchy through equality and Article 17;
- welfare-oriented through Part IV; and
- duty-oriented through Part IVA.

The advanced point is not that DPSP are "positive rights." It is that they supply positive constitutional **ends**, some of which later acquire enforceable form through amendment, legislation or Article 21.

B. Minimum floor versus full programme

[ANALYSIS] Courts can more credibly enforce:

- non-discrimination in access;
- a minimum fair-procedure entitlement;
- reasons and hearing;
- protection against starvation, bonded labour or denial of basic education; and
- statutory duties already enacted.

They are less institutionally suited to determine:

- entire welfare budgets;
- sector-wide wage or health design;
- sequencing among competing social investments; or
- continuous management of schools, hospitals and local bodies.

Advanced verdict: judicially enforce a constitutional/statutory floor; leave policy choice above that floor to accountable institutions, subject to evidence and review.

C. Article 31C as distributive constitutional review

[ANALYSIS] Article 31C is often misread as a conflict rule. It is better understood as a specialised distributive-review rule:

1. identify the 39(b)/(c) distributive objective;
2. verify the law's genuine nexus;
3. apply the limited Articles 14/19 shield;

4. preserve judicial review/basic structure; and
5. scrutinise whether the resource/common-good claim is contextually defensible.

Property Owners rejects ideological shortcuts: neither private title nor socialist rhetoric decides the case.

D. Ninth Schedule and welfare immunities

[ANALYSIS] Article 31B/Ninth Schedule historically protected land-reform and redistributive laws. *I.R. Coelho* makes clear that post-*Kesavananda* insertion cannot immunise damage to the basic structure. Therefore:

welfare objective -> constitutional protection may be available -> but basic-structure review remains.

This logic parallels Article 31C's survival without a review-ouster.

E. Federal welfare constitutionalism

[ANALYSIS] Many directives concern State or Concurrent fields: agriculture, public health, local government, personal law, labour and co-operatives. Variation is therefore structural, not accidental.

Advantages:

- policy experimentation;
- responsiveness to local conditions;
- linguistic/cultural accommodation.

Risks:

- unequal fiscal capacity;
- race to the bottom;
- fragmented entitlements;
- central conditions without adequate finance.

Rajendra N. Shah is the doctrinal warning: even a desirable co-operative reform must respect State ratification and legislative fields.

F. UCC as a design problem, not a slogan

[ANALYSIS] A mature Article 44 answer distinguishes five levels:

1. constitutional aspiration;
2. legislative competence under Entry 5;
3. rights scrutiny under Articles 14, 15, 21, 25 and 26;
4. policy choice between codification, opt-in law, targeted reform and common code; and
5. transition design: existing marriages/succession, registration, conflict of laws, customary rights and institutional capacity.

[LIMIT] "Uniform" need not mean mechanically identical treatment where relevant differences require accommodation. Conversely, "diversity" cannot immunise sex-based subordination.

G. Outcome constitutionalism

[ANALYSIS] Part IV evaluation should move beyond number of Acts:

Input	Output	Outcome	Constitutional test
Budget/ law	schools, clinics, lawyers, local institutions	learning, health, justice access, autonomy	equality, dignity, common good and non-exclusion

An Act may formally implement a directive yet fail substantively because of vacancies, inaccessible procedures, weak local finance or discriminatory delivery.

H. Novel-hypothetical method

For any new welfare, redistribution, UCC, labour or co-operative measure:

1. identify the exact DPSP and clause;

2. identify legislative competence and federal procedure;
3. determine whether a Fundamental Right is burdened;
4. test proportionality/non-arbitrariness unless Article 31C genuinely applies;
5. if 31C is invoked, verify the 39(b)/(c) nexus and preserve judicial review;
6. identify statute, institution, budget and grievance route;
7. separate enactment from implementation;
8. label current litigation/status honestly; and
9. conclude with the narrowest constitutionally sustainable route.

Solved topic-specific MCQs, verified PYQs, remedial drills and original Mains practice

PART III - Every verified routed previous-year question

Mains PYQ 1. UPSC 2023 GS-II Q2 - Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Model answer. Thesis: Free legal aid is a constitutional access-to-justice commitment under Article 39A, reinforced by Article 21 fair-procedure jurisprudence and operationalised through the Legal Services Authorities Act, 1987.

Entitlement: Section 12 covers SC/ST members; victims of trafficking or begar; women and children; persons with disability; victims of mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster; industrial workmen; persons in custody; and persons below the income ceiling prescribed by the appropriate government. Under section 13, the authority must also find a prima facie case.

NALSA's role: NALSA frames national policy and schemes and coordinates a tiered network of State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. The network supplies advice, counsel, drafting, litigation expenses, legal-awareness and clinic services, and organises Lok Adalats. *M.H. Hoskot* and *Hussainara Khatoon* show why legal representation can be integral to fair procedure.

Assessment: The statutory architecture is decentralised and includes several vulnerable groups irrespective of income. However, low awareness, uneven panel-lawyer quality, weak client communication and disposal-focused metrics reduce effective access.

Conclusion: NALSA has converted Article 39A from an aspiration into an institutional entitlement; its next task is quality-assured, early and client-centred legal service rather than mere case disposal.

Why this earns marks: It answers both limbs, accurately lists section 12 categories, adds section 13, names the full institutional chain and two cases, assesses achievements and delivery limits, and gives a reform-oriented verdict within a 10-marker structure.

Prelims PYQ 1. UPSC 2020 GS-I Q5 - Separation of judiciary

In India, separation of judiciary from the executive is enjoined by:

- A. the Preamble of the Constitution
- B. a Directive Principle of State Policy
- C. the Seventh Schedule
- D. conventional practice

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 50 in Part IV directs the State to separate the judiciary from the executive in the public services of the State. The local repository has the official question paper but no official 2020 key.

Prelims PYQ 2. UPSC 2020 GS-I Q8 - UDHR principles

Other than the Fundamental Rights, which parts of the Constitution reflect the principles and provisions of the Universal Declaration of Human Rights, 1948?

1. Preamble
 2. Directive Principles of State Policy
 3. Fundamental Duties
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: The Preamble's justice/liberty/equality/fraternity, Part IV's socio-economic commitments and Part IVA's dignity, tolerance and internationalist duties reflect UDHR values. "Reflect" does not mean verbatim or article-by-article incorporation.

Prelims PYQ 3. UPSC 2020 GS-I Q9 - Free legal services eligibility

In India, Legal Services Authorities provide free legal services to which of the following types of citizens?

1. Person with annual income below Rs 1,00,000
 2. Transgender person with annual income below Rs 2,00,000
 3. OBC member with annual income below Rs 3,00,000
 4. All senior citizens
- A. 1 and 2 only
 - B. 4 only
 - C. 2 and 3 only
 - D. 1 and 4 only

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (moderate-to-high confidence).

Explanation: The contemporaneous legal-services framework treated statements 1 and 2 as eligible. OBC status alone is not a section 12 category and all senior citizens are not automatically included nationally. Current-answer discipline is more important than memorising the old amounts: section 12 contains category eligibility plus an income route whose ceiling is prescribed by the appropriate government.

Prelims PYQ 4. UPSC 2020 GS-I Q12 - Welfare State

Which part of the Constitution of India declares the ideal of a Welfare State?

- A. Directive Principles of State Policy
- B. Fundamental Rights
- C. Preamble
- D. Seventh Schedule

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (high confidence).

Explanation: Part IV, especially Articles 38 and 39, supplies the welfare-state programme. The Preamble states justice goals, but the question asks the Part declaring the welfare-state ideal.

Prelims PYQ 5. UPSC 2020 GS-I Q18 - Part IV enforceability

With reference to Part IV, which statements are correct?

1. They shall be enforceable by courts.
 2. They shall not be enforceable by any court.
 3. The principles laid down in this Part are to influence law-making by the State.
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 2 and 3 only

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Article 37 expressly combines non-enforceability with the principles' fundamental governance status and State duty in law-making.

Prelims PYQ 6. UPSC 2021 GS-I Q91 - Concentration of wealth

Under the Indian Constitution, concentration of wealth violates:

- A. Right to Equality
- B. Directive Principles of State Policy
- C. Right to Freedom
- D. concept of Welfare

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 39(c) directs that the economic system should not result in concentration of wealth and means of production to the common detriment. The language is directive, not a standalone Fundamental Right violation.

Prelims PYQ 7. UPSC 2025 GS-I Q55 - Provision matched to constitutional location

Consider the following pairs:

1. Separation of judiciary from executive in State public services - Directive Principles of State Policy
2. Valuing and preserving the rich heritage of composite culture - Fundamental Duties
3. Prohibition of employment of children below fourteen years in factories - Fundamental Rights

How many pairs are correctly matched?

- A. Only one
- B. Only two
- C. All three
- D. None

OFFICIAL LOCAL UPSC KEY VERIFIED: C.

Explanation: Pair 1 is Article 50 in Part IV; pair 2 is Article 51A(f) in Part IVA; pair 3 is Article 24 in Part III. The Set-A official local key scan was directly checked and records Q55 as C.

PART IV - Original hard MCQs

Correct options rotate strictly A -> B -> C -> D, repeated seven times.

Q1. With reference to Articles 36 and 37, consider the following statements:

1. "State" in Part IV has the same meaning as in Part III.
2. Every Directive Principle creates an enforceable claim once Parliament has not acted for a reasonable period.
3. Article 37 combines non-enforceability with a duty on the State in making laws.

Which statements are correct?

- A. 1 and 3 only
- B. 2 only
- C. 1 and 2 only
- D. 1, 2 and 3

Answer: A.

Explanation: Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.

Q2. Which one of the following most accurately describes the historical analogy used for DPSP?

- A. They reproduce the enforceable social rights in the United States Bill of Rights.
- B. They resemble the Instrument of Instructions under the Government of India Act, 1935, but are addressed to democratic legislative and executive authorities.
- C. They are identical to Irish constitutional provisions and were copied without adaptation.
- D. They convert conventions of Cabinet government into judicial remedies.

Answer: B.

Explanation: Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.

Q3. Consider the following pairs:

1. Article 39(b) - distribution of material resources to subserve the common good
2. Article 39(c) - prevention of concentration of wealth and means of production to common detriment
3. Article 39(e) - equal pay for equal work
4. Article 39(f) - dignified development and protection of childhood/youth

Which pairs are correctly matched?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 2 and 4 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: Equal pay is Article 39(d). Article 39(e) protects worker/child health and prevents economic necessity from forcing unsuitable avocations.

Q4. Which directive contains an express qualification tied to the State's economic capacity and development?

- A. Article 39A
- B. Article 40
- C. Article 42
- D. Article 41

Answer: D.

Explanation: Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."

Q5. Which classification statement is most accurate?

- A. Article 43 overlaps: living wage is commonly socialistic, while cottage industries give it a Gandhian dimension.
- B. Article 48A is constitutionally labelled Gandhian.
- C. Article 44 is classified as socialistic by the constitutional text.
- D. Articles 47 and 48 can belong to only one scholarly category each.

Answer: A.

Explanation: The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.

Q6. Consider the following amendment changes:

1. 42nd - Articles 39A, 43A and 48A
2. 44th - Article 38(2)
3. 86th - Article 21A and recast Article 45
4. 97th - Article 43B

Which is the correct assessment?

- A. 1 and 4 only
- B. All four are correctly matched
- C. 2 and 3 only
- D. 1, 2 and 3 only

Answer: B.

Explanation: All are correct. The 42nd Amendment also changed the child-protection clause reflected in Article 39(f).

Q7. After Union of India v. Rajendra N. Shah (2021), which position is correct?

- A. The entire 97th Amendment, including Article 43B, is void.
- B. Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP.
- C. Part IXB is operative for multi-State co-operative societies, but its application to State co-operative societies failed for want of ratification; Article 43B remains.
- D. Parliament has no competence over multi-State co-operative societies.

Answer: C.

Explanation: The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.

Q8. Which statement about the current Article 31C is correct?

- A. It protects every law implementing any Directive Principle from every Fundamental Right.
- B. It prevents courts from examining whether a law genuinely implements Article 39(b) or (c).
- C. It was wholly erased when the 42nd Amendment extension was struck down.
- D. It protects genuine Article 39(b)/(c) laws against Articles 14 and 19, while judicial review of the nexus and basic structure remains.

Answer: D.

Explanation: This is the combined effect of *Kesavananda*, *Minerva Mills* and *Property Owners Association*.

Q9. Under Property Owners Association (2024), which formulation is correct?

- A. A privately owned resource may fall under Article 39(b) depending on its nature, community impact, scarcity, concentration and common-good dimension.
- B. Every private asset is automatically a material resource of the community.
- C. No privately owned resource can ever fall within Article 39(b).
- D. Article 39(b) applies only after the State has first nationalised the resource.

Answer: A.

Explanation: The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.

Q10. Arrange the following in correct constitutional sequence:

1. *Golaknath*
2. 25th Amendment
3. *Minerva Mills*
4. *Kesavananda Bharati*

- A. 2-1-4-3
- B. 1-2-4-3
- C. 1-4-2-3
- D. 2-4-1-3

Answer: B.

Explanation: 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.

Q11. Which chain most accurately explains the constitutionalisation of education?

- A. Article 45 directly became enforceable without amendment or legislation.
- B. Article 21A was inserted by the 42nd Amendment and later removed from Part III.
- C. Articles 41/45 informed *Unni Krishnan*; the 86th Amendment inserted Article 21A and recast Article 45; the RTE Act supplied a statutory mechanism.
- D. Article 46 alone created the enforceable right for every age group.

Answer: C.

Explanation: The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.

Q12. Which statement correctly distinguishes Article 40 and the 74th Amendment?

- A. Article 40 expressly directs creation of Municipalities.
- B. The 74th Amendment repealed Article 40.
- C. Article 40 applies only to Parliament and not States.
- D. Article 40 expressly concerns village panchayats; Municipalities are separately constitutionalised in Part IXA.

Answer: D.

Explanation: Local-government implementation overlaps, but the Article's exact text must be preserved.

Q13. With reference to labour implementation, which is most accurate as of 15 August 2026?

- A. An official 21 November 2025 announcement brought all four Labour Codes into effect, but enactment does not prove uniform compliance or State capacity.
- B. None of the four Labour Codes has commenced.
- C. Only the Code on Wages is relevant to Articles 42-43A.
- D. Old central labour statutes must still be cited as the sole current framework without qualification.

Answer: A.

Explanation: Current examples should use the four Codes, while retaining implementation and federal-rule cautions.

Q14. Which is the correct legal-services institutional order from national to grassroots?

- A. NALSA -> DLSA -> SLISA -> Taluk Committee
- B. NALSA -> SLISA -> DLSA -> Taluk Legal Services Committee
- C. Supreme Court -> Parliament -> DLSA -> Gram Sabha
- D. NALSA -> Finance Commission -> High Court -> Lok Sabha

Answer: B.

Explanation: Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.

Q15. Consider the following regarding sections 12 and 13 of the Legal Services Authorities Act:

1. A woman is a section 12 category irrespective of the general income route.
2. Every OBC member is independently listed as a category.
3. A person in custody is a listed category.
4. The authority must be satisfied that there is a prima facie case.

Which statements are correct?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 3 and 4 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.

Q16. If an ordinary Lok Adalat fails to secure settlement in a pending court case, what follows?

- A. It must decide the dispute on merits.
- B. Its members may impose a compromise in the public interest.
- C. The dispute becomes non-justiciable.
- D. The record returns to the referring court, which continues from the stage reached before reference.

Answer: D.

Explanation: Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.

Q17. Which feature uniquely marks a Permanent Lok Adalat?

- A. For a pre-litigation public-utility dispute, it may decide on merits after conciliation fails, provided the dispute does not relate to an offence.
- B. It hears appeals from ordinary Lok Adalat awards.
- C. It can decide non-compoundable criminal offences.
- D. It is constitutionally created by Article 39A without statutory basis.

Answer: A.

Explanation: Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.

Q18. Which statement about Article 44 is correct?

- A. It directs courts to enact a uniform code when Parliament fails.
- B. It directs the State to endeavour to secure a UCC for citizens throughout India; personal-law subjects lie in Concurrent List Entry 5.
- C. It is a Fundamental Duty enforceable through Article 32.
- D. It applies only to criminal law, which remains non-uniform.

Answer: B.

Explanation: Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.

Q19. Which case-description pair is incorrectly stated?

- A. *Shah Bano* - secular maintenance law and an Article 44 observation
- B. *Sarla Mudgal* - conversion cannot be used to evade an existing marriage
- C. *Shayara Bano* - Supreme Court ordered Parliament to enact a UCC within a fixed period
- D. *John Vallamattom* - discriminatory succession restriction and an Article 44 observation

Answer: C.

Explanation: *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.

Q20. Which statement accurately describes the Uttarakhand UCC position?

- A. It commenced before Presidential assent.
- B. It applies to every Scheduled Tribe without exception.
- C. Its reported 2026 Ordinance has a securely verified permanent replacement status.
- D. The 2024 Act received assent on 11 March 2024, commenced on 27 January 2025, and section 2 contains the verified Scheduled Tribe/customary-rights exclusion.

Answer: D.

Explanation: The 2026 Ordinance was officially reported under Article 213, but its later replacement/lapse status is not claimed.

Q21. Which set contains only directives outside Part IV?

- A. Articles 335, 350A and 351
- B. Articles 39A, 350A and 351
- C. Articles 335, 43B and 351
- D. Articles 44, 50 and 350A

Answer: A.

Explanation: Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.

Q22. Which distinction is correct?

- A. Article 48A concerns scientific animal husbandry, while Article 48 concerns forests.
- B. Article 48 combines scientific agriculture/animal husbandry with cattle protection; Article 48A concerns environment, forests and wildlife.
- C. Both Articles were inserted by the 97th Amendment.
- D. Article 48A is a Fundamental Duty.

Answer: B.

Explanation: Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.

Q23. Consider the following:

1. Article 49 protects nationally important monuments/places/objects declared by or under Parliamentary law.
2. Article 50 directs separation of judiciary from executive in State public services.
3. Article 51 encourages settlement of international disputes by arbitration.

Which are correct?

- A. 1 only
- B. 1 and 2 only
- C. 1, 2 and 3
- D. 2 and 3 only

Answer: C.

Explanation: All reproduce often-neglected textual elements of Articles 49-51.

Q24. Which statement best captures Article 47?

- A. It only directs total prohibition and says nothing about nutrition.
- B. It creates an absolute Fundamental Right to health enforceable without legislation.
- C. It concerns animal husbandry and cattle breeds.
- D. It treats nutrition, standard of living and public health as primary duties and also directs prohibition of intoxicants injurious to health except medicinal use.

Answer: D.

Explanation: Article 47 has both welfare/public-health and prohibition limbs.

Q25. Which use of a named critic is most defensible?

- A. Use K.T. Shah's "pious superfluities" to introduce the no-remedy critique, then answer it with Article 37 duty, political sanction and interpretive force.
- B. Attribute "Conscience of the Constitution" to K.T. Shah.
- C. Claim Ivor Jennings supported immediate judicial enforcement of every directive.
- D. Treat N. Srinivasan's classification as part of constitutional text.

Answer: A.

Explanation: Named quotations add value only when accurately attributed and connected to an argument and counterargument.

Q26. Which explains why DPSP implementation varies across India?

- A. Article 37 bars States from making welfare laws.
- B. Many directives concern State/Concurrent fields, and fiscal, institutional and administrative capacity differs across States.
- C. Every DPSP must be implemented only by constitutional amendment.
- D. Courts allocate identical budgets for every State.

Answer: B.

Explanation: Federal competence and capacity produce both innovation and unequal delivery.

Q27. Which matching is correct?

1. Article 43 - living wage and cottage industries
 2. Article 43A - workers' participation in management
 3. Article 43B - voluntary, autonomous, democratic and professionally managed co-operatives
- A. 1 only
 - B. 2 and 3 only
 - C. 1, 2 and 3
 - D. 1 and 3 only

Answer: C.

Explanation: The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.

Q28. Parliament enacts a statute declaring that every privately owned urban flat is a material resource of the community, states that it implements every DPSP, and bars all court review. Which is the best constitutional assessment?

- A. The declaration conclusively activates Article 31C.
- B. Article 31C protects it from every Fundamental Right because housing is welfare-related.
- C. Courts cannot question resource classification or basic structure.
- D. The law must show a genuine 39(b)/(c) nexus; not every private asset qualifies automatically; the surviving shield is only against Articles 14/19 and judicial review cannot be ousted.

Answer: D.

Explanation: The hypothetical combines *Kesavananda*, *Minerva Mills* and *Property Owners Association*. A welfare label is not constitutional proof.

PART V - Remedial MCQs for common errors

Correct options rotate strictly A -> B -> C -> D, repeated twice.

R1. Which is the safest statement?

- A. DPSP are non-justiciable, but fundamental in governance and a State duty in law-making.
- B. DPSP have no constitutional force.
- C. Every DPSP is enforceable through Article 32.
- D. Article 37 applies only during an Emergency.

Answer: A.

Explanation: This is the complete Article 37 formulation. Do not stop at "non-justiciable."

R2. The familiar Socialistic-Gandhian-Liberal classification is:

- A. contained in the Seventh Schedule
- B. a scholarly classification, not constitutional text
- C. binding on the Supreme Court
- D. created by the 42nd Amendment

Answer: B.

Explanation: The Constitution lists directives article by article without category labels.

R3. *Minerva Mills* held that:

- A. all of Article 31C is void
- B. every DPSP overrides Articles 14 and 19

- C. the 42nd Amendment extension of 31C to all DPSP is invalid and Part III-Part IV balance is basic structure
- D. Article 39(b)/(c) can never receive protection

Answer: C.

Explanation: The original limited 39(b)/(c) protection survives.

R4. Which is correct regarding ordinary Lok Adalat?

- A. It decides all disputes on merits after failed talks.
- B. Consent is irrelevant to its award.
- C. It hears non-compoundable offences.
- D. It is a conciliatory forum; award rests on settlement and is final/deemed decree/no appeal.

Answer: D.

Explanation: Merits adjudication after failed conciliation belongs to the Permanent Lok Adalat's limited statutory field.

R5. Which UCC formulation is correct?

- A. Courts have made legislative observations but have not ordered enactment of a UCC.
- B. *Shayara Bano* enacted a national civil code.
- C. Article 44 is directly enforceable.
- D. Entry 5 belongs exclusively to the Union List.

Answer: A.

Explanation: Article 44 is non-justiciable and the field is concurrent.

R6. After Rajendra N. Shah:

- A. Article 43B disappeared.
- B. Part IXB remains for multi-State co-operatives; its State-co-operative operation failed for want of ratification.
- C. all State co-operative laws became void.
- D. co-operative societies ceased to be a constitutional subject.

Answer: B.

Explanation: Severability preserved the valid components.

R7. The current labour-law answer should:

- A. list only pre-Code statutes as if nothing changed
- B. assert uniform implementation outcomes across every State
- C. use the four Labour Codes as in force from 21 Nov 2025, while qualifying State rules and delivery capacity
- D. state that Articles 42-43A are now Fundamental Rights

Answer: C.

Explanation: The legal commencement is verified; outcomes still require evidence.

R8. Article 31C currently:

- A. protects all DPSP laws from all review
- B. makes every private asset a community resource
- C. excludes judicial review of the statutory declaration
- D. gives a limited Articles 14/19 shield to genuine 39(b)/(c) laws while retaining review

Answer: D.

Explanation: This is the exact current-law control.

PART VI - Original Mains practice with examiner-grade model solutions

M1. "The Directive Principles are non-justiciable, but not non-binding." Explain. (10 marks, 150 words)

Model solution. Thesis: Article 37 denies a direct judicial remedy but simultaneously makes DPSP fundamental in governance and imposes a duty on the State to apply them in making laws. Non-justiciability therefore concerns the mode of enforcement, not constitutional insignificance.

First, Part IV supplies the welfare purpose of public power. Articles 38-39 direct justice, distribution and anti-concentration; Articles 41-43 protect work, assistance and labour dignity. Their primary sanction is political: Ambedkar argued that an elected government ignoring them must answer to the electorate.

Second, directives shape law and institutions. Article 39A became the Legal Services Authorities Act, 1987 and NALSA; Article 40 informed the 73rd Amendment; Articles 41/45 informed *Unni Krishnan*, Article 21A and the RTE Act.

Third, they possess judicial relevance. Courts use DPSP to interpret rights and reasonableness. *Minerva Mills* treated harmony between Parts III and IV as basic structure.

Qualification: Courts cannot ordinarily design the full welfare budget or compel Article 44 merely from Part IV.

Conclusion: DPSP bind through constitutional duty, legislation, interpretation and democratic accountability, while preserving policy sequencing.

Why this earns marks: It explains the apparent paradox through Article 37's full text, gives three named conversion examples, uses *Minerva Mills*, states the institutional limitation and directly answers "non-binding."

M2. Examine the present constitutional scope of Article 31C after Property Owners Association. (10 marks, 150 words)

Model solution. Thesis: Article 31C survives as a narrow distributive shield, not a general DPSP supremacy clause.

The 25th Amendment protected laws giving effect to Article 39(b) or (c) from challenge under Articles 14, 19 and then Article 31, and attempted to make the legislative declaration conclusive. *Kesavananda Bharati* upheld the substantive shield but invalidated exclusion of judicial review. The 42nd Amendment extended the shield to every DPSP; *Minerva Mills* struck that extension and held Part III-Part IV balance to be basic structure.

In *Property Owners Association* (5 November 2024), the nine-judge Bench confirmed that Article 31C, to the extent upheld in *Kesavananda*, remains in force. A court may examine whether the law genuinely furthers 39(b)/(c). Privately owned resources may qualify under 39(b), but not automatically. Nature, community impact, scarcity, concentration and common good are relevant.

Conclusion: Current Article 31C shields genuine 39(b)/(c) laws only against Articles 14 and 19; judicial review and basic-structure limits remain.

Why this earns marks: It gives the amendment-case chronology, the exact surviving rights shield, the current private-resource test and the review caveat without saying all DPSP or all private assets are covered.

M3. Trace the evolution of the relationship between Fundamental Rights and Directive Principles. Has harmony replaced hierarchy? (15 marks, 250 words)

Model solution. Thesis: The constitutional journey moves from a simple priority rule toward structured harmony, but harmony does not mean that enforceable rights disappear before any welfare claim.

Conflict phase: In *Champakam Dorairajan* (1951), a directive could not override Article 29(2); the First Amendment responded through Article 15(4). *Golaknath* (1967) then held Fundamental Rights unamendable, restricting Parliament's capacity to implement Part IV.

Constituent response: The 24th Amendment affirmed amendment power. The 25th inserted Article 31C for laws implementing Article 39(b)/(c). *Kesavananda Bharati* (1973) upheld the limited shield but struck the judicial-review ouster and subjected amendment power to basic structure.

Attempted Part IV primacy: The 42nd Amendment extended 31C to all DPSP. *Minerva Mills* (1980) invalidated it: Parts III and IV are "two wheels," and their balance is basic structure. The goals of Part IV must be pursued through

rights-compatible means.

Harmonising phase: *Unni Krishnan* used Articles 41/45/46 to illuminate Article 21; the 86th Amendment then inserted Article 21A. *I.R. Coelho* prevented post-1973 Ninth Schedule immunity from defeating basic structure.

Current precision: *Property Owners Association* (2024) confirms the original 39(b)/(c) shield, while rejecting automatic classification of every private asset as a community resource.

Verdict: Harmony has replaced crude hierarchy: rights remain enforceable constraints, directives supply distributive ends, amendment/legislation may reconcile them, and basic structure preserves judicial review and balance.

Why this earns marks: It traces the complete chronology, explains cause and effect, includes education and Ninth Schedule developments, states the exact 2024 position and gives a qualified answer to the final question.

M4. Assess whether India's legal-services and Lok Adalat framework adequately realises Article 39A. (15 marks, 250 words)

Model solution. Thesis: India has created a deep statutory architecture for Article 39A, but effective equal justice depends on service quality and informed consent, not institutional count or disposal figures alone.

Architecture: The Legal Services Authorities Act, 1987 creates NALSA, State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. Section 12 covers SC/ST members, trafficking/beggar victims, women, children, persons with disability, disaster/atrocity victims, industrial workmen, persons in custody and those below prescribed income ceilings. Section 13 adds a prima facie-case test.

Services: The network supplies advice, representation, drafting, fees/documents, clinics and awareness. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to Article 21 fair procedure.

Lok Adalat contribution: Ordinary Lok Adalats consensually settle pending or pre-litigation disputes; awards are deemed decrees, final and non-appealable. Permanent Lok Adalats address pre-litigation public-utility disputes and may decide on merits after failed conciliation, subject to the statutory offence bar.

Gaps: Low awareness, weak lawyer-client communication, uneven panel quality, linguistic/digital exclusion and pressure for disposal can reduce substantive justice. Consent must not become coerced settlement.

Way forward: early advice, counsel-performance review, client feedback, local-language access, stronger Taluk clinics and outcome-based evaluation.

Conclusion: Article 39A is institutionally realised but not uniformly experienced; the next reform is quality assurance and last-mile trust.

Why this earns marks: It accurately separates eligibility, institutions, ordinary/Permanent Lok Adalat powers, Article 21 cases, achievement and implementation limits, and proposes reforms tied to the diagnosis.

M5. Article 44 is a constitutional direction, but a Uniform Civil Code is a legislative design problem. Discuss. (15 marks, 250 words)

Model solution. Thesis: Article 44 sets the goal of common civil citizenship, but Article 37 leaves its form and timing to democratic legislation constrained by equality, liberty, religion, federal competence and workable transition.

Constitutional case: Articles 14-15 support removal of sex-based discrimination. Article 25 is subject to other Fundamental Rights and Article 25(2) permits social reform. Concurrent List Entry 5 allows Parliament and States to legislate on marriage, divorce, adoption and succession.

Judicial record: *Shah Bano*, *Sarla Mudgal* and *John Vallamattom* decided statutory/equality disputes and urged legislative attention to Article 44; they did not issue a mandamus to enact a UCC. *Shayara Bano* invalidated instant triple talaq, demonstrating targeted reform rather than a judicial common code.

Design choices: India has used community-specific codification, the opt-in Special Marriage Act, targeted equality reform and now a State common-code experiment. Goa is instructive but not perfectly uniform.

Institutional caution: The 21st Law Commission in 2018 preferred reform of discriminatory family laws at that stage; the 22nd opened consultation in 2023. Uttarakhand's Act received assent on 11 March 2024, commenced on 27 January 2025 and excludes Scheduled Tribes/customary-rights groups under section 2.

Verdict: Legitimacy requires consultation, gender-just rules, clear transition, federal competence and protection against majoritarian transplantation.

Why this earns marks: It integrates Article 44, Entry 5, equality/religion, four cases, reform routes, Law Commission positions and secure Uttarakhand facts while explicitly refusing the false "courts ordered UCC" claim.

M6. How far have Directive Principles transformed India from a police state into a welfare state? Critically evaluate. (20 marks, 300 words)

Model solution. Thesis: DPSP have transformed the constitutional purpose and institutional reach of the Indian State, but uneven capacity, federal variation and outcome gaps make the welfare transition substantial rather than complete.

Constitutional transformation: Articles 38-39 constitutionalise justice, livelihood, distribution and anti-concentration. Articles 41-43 add work, assistance, humane conditions and living wage; Articles 45-48A add childhood, vulnerable sections, health, agriculture and environment.

Named institutional gains: Land reform received protection through Articles 31A/31B and early amendments, though *I.R. Coelho* preserves post-1973 basic-structure review. Article 40 matured through the 73rd Amendment, while the 74th supports urban welfare delivery. Article 39A produced the 1987 Act and NALSA. Education moved from Articles 41/45 through *Unni Krishnan* to Article 21A and the RTE Act. Article 48A informed environmental statutes and Article 21 jurisprudence. Article 43B constitutionalised co-operative principles, subject to the federal limit in *Rajendra N. Shah*. The four Labour Codes, in force from 21 November 2025, provide a current consolidated central framework for wage, industrial-relations, social-security and safety goals.

Why the transition remains incomplete: Legislation does not ensure outcomes. Local bodies lack predictable funds/functionaries; legal-aid quality varies; informal workers may remain outside effective protection; health/nutrition depend heavily on State capacity; environmental enforcement is fragmented. Electoral incentives favour visible transfers over institution-building, and federal fiscal inequality produces territorial inequality.

Constitutional limit: Welfare ends cannot erase rights. *Minerva Mills* makes Part III-Part IV balance basic structure; *Property Owners* preserves only a narrow Article 31C shield.

Conclusion: India is constitutionally and institutionally a welfare state, but the next stage is outcome constitutionalism: funded local institutions, minimum national floors, measurable service quality and rights-compatible implementation.

Why this earns marks: It covers the full philosophy-to-delivery arc, uses eight named constitutional/statutory examples, analyses mechanism and incentives, states rights/federal limitations and gives a graded "how far" verdict.

M7. "Directive Principles are a constitutional compass, not a delivery guarantee." Evaluate the criticisms and continuing utility of Part IV. (20 marks, 300 words)

Model solution. Thesis: The metaphor is accurate if "compass" denotes binding constitutional direction rather than optional morality: Part IV guides legislation, interpretation and political accountability but cannot by itself guarantee resources, institutions or outcomes.

Criticisms: K.T. Shah's "pious superfluities" and resource-dependent cheque attack the absence of legal remedies. T.T. Krishnamachari's "dustbin of sentiments" and N. Srinivasan's arrangement critique question coherence. Ivor Jennings called them pious aspirations and saw a dated Fabian inheritance. K. Santhanam warned of Centre-State and executive conflict.

Why these critiques matter: Article 41 itself admits capacity constraints. Broad directives can permit symbolic legislation, selective implementation and judicial overreach. Many subjects - health, agriculture, local government, labour and personal law - are federally divided. Without budgets, trained personnel and grievance systems, constitutional language may not change lived outcomes.

Continuing utility: Article 37 expressly makes the principles fundamental in governance and a State duty. Ambedkar linked them to economic democracy and electoral sanction; Granville Austin treated Part III and IV as the conscience of social revolution; B.N. Rau emphasised educative value; M.C. Setalvad saw them as beacon-lights for courts and the background to State action.

Concrete proof: Article 39A produced NALSA; Article 40 informed constitutional local government; Articles 41/45 helped generate Article 21A; Article 48A shaped environmental law; Article 43B supports co-operative autonomy. *Minerva Mills* constitutionalised harmony, while *Property Owners* preserves a carefully bounded distributive shield.

Graded verdict: DPSP are neither judicially enforceable rights nor empty promises. Their enduring value lies in setting ends, disciplining public justification and enabling progressive conversion into rights and institutions. Delivery requires finance, federal coordination, measurement and Part III-compatible means.

Why this earns marks: It uses exact named critics and defenders, tests their claims against Article 37 and real institutions, integrates federal/resource/judicial limits and gives a balanced constitutional verdict rather than a quotation list.

Final consolidated register notes - Directive Principles of State Policy

Part IV architecture and constitutional identity

- Part IV = Articles 36-51.
- Source: Irish Constitution of 1937; Irish model drew from Spain.
- Ambedkar analogy: Instrument of Instructions under Government of India Act, 1935, now directed to democratic legislature/executive.
- Article 36: State has Part III/Article 12 meaning.
- Article 37 three-part formula: **not enforceable by court -> fundamental in governance -> State duty in law-making**.
- Welfare state replaces police-state orientation: justice, capability, dignity and distribution become constitutional purposes.
- Non-justiciability preserves sequencing and institutional competence; it does not mean optionality.
- Main sanction: political/public opinion, legislative accountability and elections; secondary force: interpretation and reasonableness.

Reasons for non-justiciability and force chain

- Founding constraints: limited finance, diversity/backwardness, new State's competing burdens, need to choose order/time/place/mode.
- Direct writ merely for non-implementation: ordinarily unavailable.
- Court may use DPSP to interpret FR/statute, identify reasonableness and enforce a statutory/rights floor.
- Full chain: directive -> competence -> legislation -> budget -> institution -> grievance/audit -> electoral/judicial accountability.

Articles 38 and 39 rapid recall

Provision	Keyword
38(1)	social order with social/economic/political justice
38(2)	minimise inequalities in income, status, facilities, opportunities
39(a)	adequate livelihood
39(b)	material resources -> common good
39(c)	no wealth/means-of-production concentration to common detriment
39(d)	equal pay for equal work
39(e)	worker/child health; no economically forced unsuitable avocation
39(f)	child development in freedom/dignity; protection from exploitation/abandonment

Memory: L-R-C-P-H-C = Livelihood, Resources, Concentration, Pay, Health, Children.

Articles 39A to 43B rapid recall

- 39A: equal justice and free legal aid.
- 40: village panchayats as units of self-government.
- 41: work, education, public assistance **within economic capacity and development**.
- 42: humane work conditions and maternity relief.
- 43: living wage, decent life, leisure/culture + rural cottage industries.
- 43A: worker participation in management.
- 43B: voluntary formation, autonomous functioning, democratic control, professional management of co-operatives.
- Close pair: 43 = worker welfare/cottage economy; 43A = industrial participation; 43B = co-operative governance.

Articles 44 to 51 rapid recall

- 44: endeavour for UCC for citizens throughout India.
- 45: early childhood care/education until six.
- 46: educational/economic interests of weaker sections, especially SC/ST; protection from injustice/exploitation.
- 47: nutrition + living standard + public health as primary duties; prohibition of injurious intoxicants except medicinal use.
- 48: scientific agriculture/animal husbandry + breed preservation + cattle-slaughter direction.
- 48A: environment, forests, wildlife.
- 49: nationally important monuments/places/objects declared by/under Parliamentary law.
- 50: separate judiciary from executive in State public services.
- 51: peace/security; just/honourable relations; respect international law/treaties; arbitration.

Scholarly classification with overlap

Socialistic	Gandhian	Liberal-intellectual
38, 39, 39A, 41, 42, 43, 43A, 47	40, 43, 43B, 46, 47, 48	44, 45, 48, 48A, 49, 50, 51

- Classification is not constitutional text.
- Overlaps: 43, 47, 48; Article 46 also has distributive/Gandhian dimensions.
- Exam rule: Article text first, taxonomy second.

Amendment ledger

Amendment	Part IV effect
42nd, 1976	39(f), 39A, 43A, 48A
44th, 1978	38(2)
86th, 2002	Article 21A + recast 45
97th, 2011	43B + Part IXB + co-operative element in 19(1)(c)

- *Rajendra N. Shah* (2021): Part IXB invalid for State co-operatives for lack of ratification; operative for multi-State co-operatives; Article 43B remains.

FR-DPSP chronology

1. *Champakam* 1951: FR prevail in conflict -> First Amendment/15(4).
2. *Golaknath* 1967: FR unamendable.
3. 24th 1971: amendment power affirmed.
4. 25th 1971: Article 31C for 39(b)/(c) + attempted review-ouster.
5. *Kesavananda* 1973: basic structure; shield upheld; review-ouster invalid.
6. 42nd 1976: 31C extended to all DPSP.

7. *Minerva Mills* 1980: extension invalid; harmony/balance basic structure.
8. *Unni Krishnan* 1993 -> education through Article 21.
9. 86th Amendment 2002 -> Article 21A.
10. *I.R. Coelho* 2007 -> post-24 April 1973 Ninth Schedule laws reviewable for basic-structure damage.
11. *Property Owners* 2024 -> original 31C survives narrowly.

Current Article 31C control

- Genuine 39(b)/(c) law: shield against Articles 14 and 19.
- No shield for every DPSP.
- Court reviews real nexus; legislative declaration not conclusive.
- Judicial review/basic structure remains.
- Private resource can qualify, but not automatically.
- Resource factors: nature, community impact, scarcity, concentration, common good/public trust.
- Do not write "FR always prevail"; write enforceable-right primacy qualified by harmony, amendment power and narrow 31C.

Implementation evidence bank

Directive	Evidence	Qualification
38/39	land reform; early amendments; 31A/31B	post-1973 Ninth Schedule review
40	73rd Amendment	incomplete 3F devolution
urban welfare	74th Amendment	Article 40 text is village-specific
39A	LSA Act 1987; NALSA; Lok Adalat	awareness/counsel quality
41/45	86th Amendment; RTE Act 2009	learning/ECCE gaps
42/43/43A	four Labour Codes effective 21 Nov 2025	State rules/compliance/informality
46	protective discrimination/welfare law	outcome debate belongs to FR/Social Justice
47	NFSA 2013; health/nutrition systems; prohibition laws	State capacity and liberty/revenue trade-offs
48A	Water 1974, Air 1981, EPA 1986, NGT 2010	enforcement gap
49	AMASR Act 1958; ASI	conservation-development conflict
43B	97th Amendment; co-operative laws	federal/capture issues
50	separation of judicial/executive magistracy	subordinate-judiciary capacity
51	UN/treaty practice; Arbitration Act 1996	treaties not automatically self-executing

NALSA and free legal aid

- Constitutional base: 39A; enforceable fair-procedure link: Article 21, *M.H. Hoskot*, *Hussainara Khatoon*.
- Statute: Legal Services Authorities Act, 1987.
- Levels: NALSA -> SLSA/court committees -> DLSA -> Taluk committee.
- Section 12: SC/ST; trafficking/begar victim; woman/child; disability; disaster/violence/atrocity victim; industrial workman; custody; prescribed-income route.
- Section 13: prima facie case; income affidavit generally sufficient unless disbelieved.
- No single national income ceiling.
- Services: advice, lawyer, drafting, fees/documents, clinics, awareness, entitlements and ADR.
- Assessment: wide architecture; uneven awareness, quality, communication, follow-up and outcome measurement.

Lok Adalat firewall

Ordinary Lok Adalat	Permanent Lok Adalat
pending or pre-litigation	pre-litigation public utility
conciliator only	conciliation then limited merits decision
settlement/consent essential	may decide after failed settlement if not offence
failed pending case returns to court	statutory decision follows
award deemed decree, final/binding, no appeal	award deemed decree, final/binding; no original suit/application/execution challenge

- Non-compoundable offence: outside ordinary jurisdiction.
- Do not equate "no appeal" with identical powers.

Article 44/UCC answer controls

- Exact text: State shall endeavour; citizens; throughout India.
- Legislative field: Concurrent List Entry 5.
- Rights matrix: 14/15 equality + 21 autonomy/dignity + 25/26 religion; 25(2) reform power.
- Cases: *Shah Bano*, *Sarla Mudgal*, *John Vallamattom* = holdings plus legislative observations; *Shayara Bano* = instant triple talaq, not UCC.
- Never say courts ordered UCC.
- Reform routes: community codification; Special Marriage Act opt-in; targeted equality reform; common code.
- Goa: common-law example with exceptions; not perfectly uniform.
- 21st Law Commission 2018: neither necessary nor desirable at that stage; reform discriminatory family law.
- 22nd Commission 2023: public consultation; no final recommendation claimed.
- Uttarakhand: assent 11 Mar 2024; commencement 27 Jan 2025; section 2 ST/Part XXI customary-rights exclusion.
- 2026 Ordinance: official News on AIR report under Article 213/immediate effect; do not invent sections, penalties, litigation result or current replacement/lapse.

Directives outside Part IV

- Article 335: SC/ST service claims consistent with efficiency, with constitutional provisos.
- Article 350A: mother-tongue primary instruction for linguistic minorities; Presidential directions possible.
- Article 351: Union duty to develop/spread Hindi for composite culture.
- Study label only; do not relocate them into Part IV or Article 37.

Criticism, defence and graded verdicts

- K.T. Shah: pious superfluities/resource cheque -> answer with Article 37 duty and political sanction.
- T.T. Krishnamachari: dustbin of sentiments -> answer with concrete constitutionalisation.
- Wheare/Jennings: aspiration/moral homily -> answer with interpretation, statutes and institutions.
- N. Srinivasan: illogical arrangement -> accept overlap, reject rigid taxonomy.
- K. Santhanam: institutional conflict -> federal competence/finance/coordination.
- Ambedkar: economic democracy and electorate.
- Austin: conscience/social revolution.
- B.N. Rau: educative moral precepts.
- Setalvad: instructions, beacon to courts, background to State action, Preamble amplification.
- Final verdict: **constitutional compass + duty + institutional conversion; not a self-executing delivery guarantee.**

Prelims trap wall

- Ireland, not USA; Spain is the antecedent.
- Non-justiciable, not non-binding.
- Classification is scholarly, not constitutional.
- 39(b) resources/common good; 39(c) anti-concentration.
- 41 contains economic-capacity limit.
- 43/43A/43B are different.
- 45 now below six; 21A covers 6-14.
- 48 versus 48A.
- Article 50 = separation of judiciary.
- 31C survives only for 39(b)/(c), against 14/19, with review.
- Not every private asset is a community resource.
- Article 43B remains after *Rajendra N. Shah*.
- Ordinary Lok Adalat cannot adjudicate after failed settlement.
- No single national legal-aid income ceiling.
- Courts did not order UCC.

Mains answer spine

1. Thesis answering the directive.
2. Exact Article/Article 37 status.
3. Amendment, case, statute and institution.
4. Evidence formula: claim -> named evidence -> what it proves -> qualification.
5. Mechanism: competence -> budget -> institution -> outcome.
6. Counterpoint: rights, federalism, resources, incentives, capacity.
7. Current control only where verified.
8. Graded conclusion: harmony, workable delivery and measurable outcomes.